

# Application for Individual Deferred or Indexed Deferred Annuity



## Athene Annuity and Life Company

Mailing Address: PO Box 1555, Des Moines, IA 50306-1555

Overnight Address: 7700 Mills Civic Parkway

West Des Moines, IA 50266-3862

Customer Contact Center - Tel: 888-266-8489 Fax: 866-709-3922

Submit applications to: documents@athene.com

## FINANCIAL PROFESSIONAL (PRODUCER) CODE & NAME:

APP SIGNED STATE:

SOLICITATION STATE:

DISTRIBUTOR ACCOUNT ID#:

AGENT/PRODUCER FLORIDA  
LICENSE ID#:

## 1. PRODUCT

|              |          |
|--------------|----------|
| Product Name | Rider(s) |
|--------------|----------|

## 2. OWNER

|                                                                                                                                                                                 |                          |                                                                 |                                                                                                        |                      |  |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------|-----------------------------------------------------------------|--------------------------------------------------------------------------------------------------------|----------------------|--|
| Individual or Trustee First Name                                                                                                                                                | M.I.                     | Last Name                                                       | Suffix                                                                                                 |                      |  |
| Trust or Company Name                                                                                                                                                           |                          |                                                                 |                                                                                                        |                      |  |
| Social Security Number/Tax ID                                                                                                                                                   | Date of Birth (MM/DD/YY) | Gender<br><input type="checkbox"/> M <input type="checkbox"/> F | Relationship to Proposed Annuitant:<br><input type="checkbox"/> Spouse <input type="checkbox"/> Other: |                      |  |
| Street Address (Required - No PO Box)                                                                                                                                           | City                     | State                                                           | Zip                                                                                                    | Country              |  |
| Mailing Address (Optional)                                                                                                                                                      | City                     | State                                                           | Zip                                                                                                    | Country              |  |
| US Citizen<br><input type="checkbox"/> Yes <input type="checkbox"/> No                                                                                                          | Country of Citizenship   | E-mail                                                          |                                                                                                        | Telephone (Required) |  |
| Type of gov't issued photo ID: <input type="checkbox"/> Driver's license <input type="checkbox"/> Passport <input type="checkbox"/> Other _____ State or Country of issue _____ |                          |                                                                 |                                                                                                        |                      |  |

**Note:** If the proposed owner(s) is a non-natural entity (i.e. Trust, Corporation, Association, etc.), additional documentation will be required to establish the entity's legal identity and who has authority to legally act on behalf of the entity.

## 3. JOINT OWNER Not applicable to qualified contracts or those owned by non-natural entities

|                                                                                                                                                                                 |                          |                                                                 |                                                                                                    |                                     |  |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------|-----------------------------------------------------------------|----------------------------------------------------------------------------------------------------|-------------------------------------|--|
| Individual or Trustee First Name                                                                                                                                                | M.I.                     | Last Name                                                       | Suffix                                                                                             |                                     |  |
| Trust or Company Name                                                                                                                                                           |                          |                                                                 |                                                                                                    |                                     |  |
| Social Security Number/Tax ID                                                                                                                                                   | Date of Birth (MM/DD/YY) | Gender<br><input type="checkbox"/> M <input type="checkbox"/> F | Relationship to Proposed Owner:<br><input type="checkbox"/> Spouse <input type="checkbox"/> Other: |                                     |  |
| Street Address (Required - No PO Box)                                                                                                                                           | City                     | State                                                           | Zip                                                                                                | Country                             |  |
| Mailing Address (Optional)                                                                                                                                                      | City                     | State                                                           | Zip                                                                                                | Country                             |  |
| US Citizen<br><input type="checkbox"/> Yes <input type="checkbox"/> No                                                                                                          | Country of Citizenship   | E-mail                                                          |                                                                                                    | Telephone (Required, if applicable) |  |
| Type of gov't issued photo ID: <input type="checkbox"/> Driver's license <input type="checkbox"/> Passport <input type="checkbox"/> Other _____ State or Country of issue _____ |                          |                                                                 |                                                                                                    |                                     |  |



# Application for Individual Deferred or Indexed Deferred Annuity



## 4. **REPLACEMENT** This section **MUST** be completed

1. ☐ Yes ☐ No Do you have an existing life insurance policy or annuity contract?
2. ☐ Yes ☐ No Will this annuity change or replace an existing life insurance policy or annuity contract?

## 5. **ANNUITANT (Complete if different from Owner)**

|                                       |      |                                                                                                    |       |     |                                                                 |
|---------------------------------------|------|----------------------------------------------------------------------------------------------------|-------|-----|-----------------------------------------------------------------|
| First Name                            | M.I. | Last Name                                                                                          |       |     | Suffix                                                          |
| Social Security Number/Tax ID         |      | Date of Birth (MM/DD/YY)                                                                           |       |     | Gender<br><input type="checkbox"/> M <input type="checkbox"/> F |
| Telephone (Required)                  |      | Relationship to Proposed Owner:<br><input type="checkbox"/> Spouse <input type="checkbox"/> Other: |       |     |                                                                 |
| Street Address (Required - No PO Box) |      | City                                                                                               | State | Zip | Country                                                         |
| Mailing Address (Optional)            |      | City                                                                                               | State | Zip | Country                                                         |

## 6. **JOINT ANNUITANT** Not applicable to non-spouse or qualified contracts

|                                       |      |                                                                                                        |       |     |                                                                 |
|---------------------------------------|------|--------------------------------------------------------------------------------------------------------|-------|-----|-----------------------------------------------------------------|
| First Name                            | M.I. | Last Name                                                                                              |       |     | Suffix                                                          |
| Social Security Number/Tax ID         |      | Date of Birth (MM/DD/YY)                                                                               |       |     | Gender<br><input type="checkbox"/> M <input type="checkbox"/> F |
| Telephone (Required, if applicable)   |      | Relationship to Proposed Annuitant:<br><input type="checkbox"/> Spouse <input type="checkbox"/> Other: |       |     |                                                                 |
| Street Address (Required - No PO Box) |      | City                                                                                                   | State | Zip | Country                                                         |
| Mailing Address (Optional)            |      | City                                                                                                   | State | Zip | Country                                                         |



# Application for Individual Deferred or Indexed Deferred Annuity

## 7. BENEFICIARIES

- Proceeds will be divided equally if no percentages are listed. All beneficiaries must be living/existing at the time of Application. The sum of the percentages for Primary and Contingent Beneficiaries, respectively, must total 100%. A contingent beneficiary will receive the proceeds if the primary beneficiary dies prior to the payment of any proceeds.
- If the beneficiary is a trust, include the name and trust creation date on the Beneficiary name line.
- Please provide Social Security/Tax Identification Numbers to expedite future Death Claim processing.
- List additional beneficiaries on a separate page. Owner must sign, date and include required information.

|                                   |  |                         |  |                                                                         |  |                                                                        |             |
|-----------------------------------|--|-------------------------|--|-------------------------------------------------------------------------|--|------------------------------------------------------------------------|-------------|
| Individual, Trust or Company Name |  |                         |  | <input type="checkbox"/> Primary<br><input type="checkbox"/> Contingent |  | Percentage %                                                           |             |
| Telephone (Recommended)           |  |                         |  | E-mail                                                                  |  |                                                                        |             |
| Social Security Number/Tax ID     |  | Date of Birth(MM/DD/YY) |  | Gender<br><input type="checkbox"/> M <input type="checkbox"/> F         |  | Relationship to Proposed Owner:<br>Relationship to Proposed Annuitant: |             |
| Address                           |  |                         |  | City                                                                    |  | State                                                                  | Zip Country |

|                                       |  |                         |  |                                                                         |  |                                                                        |             |
|---------------------------------------|--|-------------------------|--|-------------------------------------------------------------------------|--|------------------------------------------------------------------------|-------------|
| Individual, Trust or Company Name     |  |                         |  | <input type="checkbox"/> Primary<br><input type="checkbox"/> Contingent |  | Percentage %                                                           |             |
| Telephone (Recommended if applicable) |  |                         |  | E-mail                                                                  |  |                                                                        |             |
| Social Security Number/Tax ID         |  | Date of Birth(MM/DD/YY) |  | Gender<br><input type="checkbox"/> M <input type="checkbox"/> F         |  | Relationship to Proposed Owner:<br>Relationship to Proposed Annuitant: |             |
| Address                               |  |                         |  | City                                                                    |  | State                                                                  | Zip Country |

|                                       |  |                         |  |                                                                         |  |                                                                        |             |
|---------------------------------------|--|-------------------------|--|-------------------------------------------------------------------------|--|------------------------------------------------------------------------|-------------|
| Individual, Trust or Company Name     |  |                         |  | <input type="checkbox"/> Primary<br><input type="checkbox"/> Contingent |  | Percentage %                                                           |             |
| Telephone (Recommended if applicable) |  |                         |  | E-mail                                                                  |  |                                                                        |             |
| Social Security Number/Tax ID         |  | Date of Birth(MM/DD/YY) |  | Gender<br><input type="checkbox"/> M <input type="checkbox"/> F         |  | Relationship to Proposed Owner:<br>Relationship to Proposed Annuitant: |             |
| Address                               |  |                         |  | City                                                                    |  | State                                                                  | Zip Country |

|                                       |  |                         |  |                                                                         |  |                                                                        |             |
|---------------------------------------|--|-------------------------|--|-------------------------------------------------------------------------|--|------------------------------------------------------------------------|-------------|
| Individual, Trust or Company Name     |  |                         |  | <input type="checkbox"/> Primary<br><input type="checkbox"/> Contingent |  | Percentage %                                                           |             |
| Telephone (Recommended if applicable) |  |                         |  | E-mail                                                                  |  |                                                                        |             |
| Social Security Number/Tax ID         |  | Date of Birth(MM/DD/YY) |  | Gender<br><input type="checkbox"/> M <input type="checkbox"/> F         |  | Relationship to Proposed Owner:<br>Relationship to Proposed Annuitant: |             |
| Address                               |  |                         |  | City                                                                    |  | State                                                                  | Zip Country |

# Application for Individual Deferred or Indexed Deferred Annuity



## 8. ANNUITY TYPE Select **one** option to indicate how **this contract** should be issued

|                                                                               |                                      |                                                            |
|-------------------------------------------------------------------------------|--------------------------------------|------------------------------------------------------------|
| <input type="checkbox"/> <b>Non-Qualified</b>                                 |                                      |                                                            |
| <input type="checkbox"/> <b>IRA</b> (Select only one):                        | <input type="checkbox"/> Traditional | <input type="checkbox"/> Roth <input type="checkbox"/> SEP |
| <input type="checkbox"/> <b>Inherited IRA</b> <sup>1</sup> (Select only one): | <input type="checkbox"/> Traditional | <input type="checkbox"/> Roth                              |

**For Qualified options**, select all that apply:

☐ Contribution Year \_\_\_\_\_ ☐ Direct Transfer/Rollover<sup>2</sup> ☐ Rollover within 60 Days<sup>3</sup>

### If Inherited IRA selected above, complete for Decedent:

Decedent Name:

Relationship to Proposed Annuitant:

☐ Spouse ☐ Other:

Date of Birth (MM/DD/YY)

Date of Death (MM/DD/YY)

## 9. PREMIUMS Make all checks payable to **Athene Annuity and Life Company**; estimate total transfer amounts

|                                                                   |    |
|-------------------------------------------------------------------|----|
| <b>New Purchase</b>                                               | \$ |
| <b>Transfer/Rollover</b>                                          | \$ |
| <b>Internal Transfer</b> Existing Athene Contract Number(s) _____ | \$ |
| <b>TOTAL ANTICIPATED PREMIUM</b>                                  | \$ |

## 10. ELECTRONIC DELIVERY AUTHORIZATION

Do you consent to Electronic Delivery (e-delivery) of Documents? ..... ☐ Yes ☐ No  
If no election is made, Athene will default to "No."

By selecting **Yes**, you agree to receive via electronic means rather than paper copies, all documents applicable to your contract that Athene is required by law to provide or make available to you in writing, including but not limited to, your Annuity contract, contract statements, tax forms, privacy notice and other notices ("Required Documents"), as well as other information, service documents, general communications and documentation regarding your Annuity contract ("Other Documents").

I understand that:

- Not all contract documentation and notifications may be currently available in electronic format.
- Registration on Athene's website (www.athene.com/myathene) may be required for e-delivery of certain contract-related correspondence.
- There is no charge for e-delivery, although my Internet provider may charge for Internet access.
- I should provide a current e-mail address and notify Athene promptly when my e-mail address changes. If I authorize e-delivery but do not provide an e-mail address or the address is illegible, Athene will not initiate e-delivery.
- You may request paper copies, whether or not you consent or revoke your consent for e-delivery, at any time and for no charge.
- Athene will send paper copies of annual statements if required by state or federal law.
- For jointly owned contracts, both owners are consenting to receive information electronically. All information will be provided to a single e-mail address, the first e-mail address listed above.
- E-delivery will be cancelled if e-mails are returned undeliverable.
- This consent will remain in effect until I revoke it and covers delivery to you in the form of an e-mail or by notice to you of a document's availability on Athene's website (www.athene.com/myathene).

<sup>1</sup> The ability to open an Inherited/Beneficiary IRA, Inherited/Beneficiary Roth IRA or Non-Qualified Stretch may be limited.

<sup>2</sup> Please complete and submit the applicable Request for Funds Form or ACORD 951 form, for each account to be transferred into this contract.

<sup>3</sup> I understand that, except in the case of a Roth Conversion, I can make only one rollover from an IRA (including a Traditional IRA, Roth IRA, or SEP IRA) to an IRA in any 1-year period, regardless of the number of IRAs I own.



**10. ELECTRONIC DELIVERY AUTHORIZATION** (continued)

The computer hardware and software requirements that are necessary to receive, process and retain electronic communications that are subject to this consent are as follows: To view and download material electronically, you must have a computer with Internet access, an active e-mail account and Adobe Acrobat Reader. If you don't already have Adobe Acrobat Reader, you can download it free from [www.adobe.com](http://www.adobe.com).

**11. AGREEMENTS AND SIGNATURES**

The Owner agrees that all statements and answers to questions on this application are true to the best of my knowledge and belief.

**CA Residents:** For your protection, California law requires the following statement to appear on this application. Any person who knowingly presents false or fraudulent information to obtain or amend insurance coverage or to make a claim for the payment of a loss is guilty of a crime and may be subject to fines and confinement in state prison.

To better understand how Athene collects and uses personal information, you may view Athene's California Privacy Policy online at: <https://www.athene.com/privacy>.

**FL Residents:** Any person who knowingly and with intent to injure, defraud, or deceive any insurer files a statement of claim or an application containing any false, incomplete, or misleading information is guilty of a felony of the third degree.

**ND and SD Residents:** Any person who knowingly presents a materially false or fraudulent claim for payment of a loss or benefit, or knowingly presents materially false information in an application for insurance may be guilty of a crime and subject to fines and confinement in prison, depending on state law.

**DE Residents:** This notice is to inform you that in compliance with the Delaware Civil Union and Equality Act of 2011, effective January 1, 2012 under all Athene Annuity and Life Company insurance certificates and riders covering Delaware residents, any benefit, coverage or right, governed by Delaware state law, provided to a person considered a spouse by marriage will also be provided to a party to a civil union and any benefit, coverage or right, governed by Delaware state law, provided to a child of a marriage will also be provided to a child of a civil union.

**DISCLOSURE TO CONTRACT OWNERS**

**Residents of all states:**

Amounts payable under the Contract are subject to a Market Value Adjustment (if applicable) on the date or dates, as specified in the Contract.

I have received a copy of the disclosure material and understand that the results shown, other than the Guaranteed Minimum Values, are not guarantees, promises, or warranties.

Payment must be made payable to Athene Annuity and Life Company.

**Indexed Deferred Annuity Applicants:** I understand that I am applying for a fixed indexed deferred annuity and realize that while the values of the contract may be affected by an external index, the contract does not directly participate in any stock or equity investments. I further understand any values shown, other than guaranteed minimum values, are not guarantees, promises or warranties.

## 11. AGREEMENTS AND SIGNATURES (continued)

### IRS CERTIFICATION

Under penalties of perjury, I certify that:

1. The Social Security Number or Taxpayer Identification Number shown on this form is correct (or I am waiting for a number to be issued to me), and
2. I am not subject to backup withholding because: (a) I am exempt from backup withholding, or (b) I have not been notified by the Internal Revenue Service (IRS) that I am subject to backup withholding as a result of a failure to report all interest or dividends, or (c) the IRS has notified me that I am no longer subject to backup withholding, and
3. I am a U.S. citizen or other U.S. person (as defined in the General Instructions of IRS Form W-9), and
4. The FATCA code(s) entered on this form (if any) indicating that I am exempt from FATCA reporting is correct. Exemption from FATCA reporting code (if any):\_\_\_\_\_. (FATCA reporting codes can be found in the General Instructions on IRS Form W-9.) If you are only submitting this form for an account you hold in the United States, you may leave this field blank.

Certification Instructions: You must cross out item 2 above if you have been notified by the IRS that you are currently subject to backup withholding because you have failed to report all interest and dividends on your tax return.

**The Internal Revenue Service does not require your consent to any provisions of this document other than the certifications required to avoid backup withholding.**

|                                           |                                           |         |
|-------------------------------------------|-------------------------------------------|---------|
| Signed at City                            | State                                     | On Date |
| Owner Signature                           | Joint Owner Signature (if applicable)     |         |
| X                                         | X                                         |         |
| Annuitant Signature (if other than Owner) | Joint Annuitant Signature (if applicable) |         |
| X                                         | X                                         |         |

# Application for Individual Deferred or Indexed Deferred Annuity



## 12. PRODUCER USE ONLY

1. ☐ Yes ☐ No Does the applicant have an existing life insurance policy or annuity contract?
2. ☐ Yes ☐ No Will this annuity replace or change an existing life insurance policy or annuity contract?
- If (Yes) to either question, and if required by state regulation, replacement forms must accompany this application.
3. ☐ Yes ☐ No Is any participant on this contract or a dependent family member of a participant on this contract an active duty (full-time) service member (officer or enlisted) of the United States Armed Forces (Army, Navy, Air Force, Marine Corps, or Coast Guard)? If Yes, please complete Military Disclosure Form 18257.

In accordance with Athene's Customer Information Program and the Know Your Customer requirements of the USA PATRIOT Act, I have reviewed a non-expired government issued ID of the owner.

By signing below, I certify I have truly and accurately recorded on this application the information provided by the applicant. I certify that only company approved sales materials were used and that copies of such materials were 1) left with the client and 2) retained in my files. I certify any required disclosure material has been presented to the applicant. I have not made any statements which differ from this material nor have I made any promises about the future expected values of this Contract.

Please complete the section below.

|                                                                        |                                      |                                   |                                  |
|------------------------------------------------------------------------|--------------------------------------|-----------------------------------|----------------------------------|
| Writing Producer Signature<br>X                                        | Writing Producer Name (Please print) | Date Signed                       |                                  |
| <b>If splitting commissions, please provide the following details:</b> |                                      |                                   |                                  |
| Producer Name                                                          | Producer Code                        | Producer Telephone/E-mail Address | Split % - <b>MUST Equal 100%</b> |
|                                                                        |                                      |                                   |                                  |
|                                                                        |                                      |                                   |                                  |
|                                                                        |                                      |                                   |                                  |
|                                                                        |                                      |                                   |                                  |

- ☐ Commission Option 1 ☐ Commission Option 2 (Trail) ☐ Commission Option 3 (Trail)
- Commission options vary by product.



# California Customer Identification and Suitability Confirmation Worksheet



## Mail or fax completed form to:

P.O. Box 1555, Des Moines, IA 50306-1555 Fax: 866-709-3922  
Email: submitcustomerdocs@athene.com  
Customer Contact Center - Tel: 888-266-8489

## Athene Annuity and Life Company

7700 Mills Civic Parkway, West Des Moines, IA 50266-3862

Please complete this worksheet and submit with your application. The financial and personal information requested on this form is required to verify if the product meets your needs and objectives. This form must be completed, signed, and dated to consider your application complete. **Incomplete forms will delay processing.**

- For Revocable Trust ownership, complete the worksheet on behalf of the grantor/settlor.
- For Irrevocable Trust ownership, employment status and date of birth should be completed on behalf of the annuitant. The remainder of the worksheet should be completed on behalf of the trust.
- For all other non-natural owners, employment status and date of birth should be completed on behalf of the annuitant. The remainder of the worksheet should be completed on behalf of the entity.
- For additional information on how to complete this worksheet, please review the step-by-step guide, <https://p.widencdn.net/mvsbua/20543>.

**\*Household means the applicant and applicant's spouse or domestic partner, as applicable by state law.\***

### OWNER

|                                       |                                                        |                                        |                                                                      |
|---------------------------------------|--------------------------------------------------------|----------------------------------------|----------------------------------------------------------------------|
| Owner/Trust/Entity Name               |                                                        | Date of Birth (MM/DD/YYYY)             |                                                                      |
| Employment Status<br><i>Check one</i> | <input type="checkbox"/> Employed (Full and Part time) | <input type="checkbox"/> Self-Employed | <input type="checkbox"/> Unemployed <input type="checkbox"/> Retired |
|                                       | <input type="checkbox"/> Homemaker                     | <input type="checkbox"/> Disabled      | <input type="checkbox"/> Student                                     |

### JOINT OWNER (complete separate form if not owner's spouse/domestic partner)

|                                       |                                                        |                                        |                                                                      |
|---------------------------------------|--------------------------------------------------------|----------------------------------------|----------------------------------------------------------------------|
| Joint Owner                           |                                                        | Date of Birth (MM/DD/YYYY)             |                                                                      |
| Employment Status<br><i>Check one</i> | <input type="checkbox"/> Employed (Full and Part time) | <input type="checkbox"/> Self-Employed | <input type="checkbox"/> Unemployed <input type="checkbox"/> Retired |
|                                       | <input type="checkbox"/> Homemaker                     | <input type="checkbox"/> Disabled      | <input type="checkbox"/> Student                                     |

### FINANCIAL OBJECTIVES (please answer ALL Financial sections using Household Assets)

**A. Source of income** Check all that apply. For personal owned contracts, DO NOT include income from business accounts. For business owned contracts, DO NOT include income from personal accounts.

- |                                                 |                                              |                                                                                          |
|-------------------------------------------------|----------------------------------------------|------------------------------------------------------------------------------------------|
| <input type="checkbox"/> Household Wages/Salary | <input type="checkbox"/> 401(k)/Pension Plan | <input type="checkbox"/> Social Security (not including disability)                      |
| <input type="checkbox"/> Rental Income          | <input type="checkbox"/> 403(b)              | <input type="checkbox"/> Investment Income/RMDs                                          |
| <input type="checkbox"/> *Disability            | <input type="checkbox"/> *Unemployment       | <input type="checkbox"/> *Severance                                                      |
| <input type="checkbox"/> *Child Support         | <input type="checkbox"/> *Alimony            | <input type="checkbox"/> Business Income (to be used for corporate owned contracts only) |
| <input type="checkbox"/> None                   |                                              |                                                                                          |

\*If "disability," "unemployment," "severance," "child support" and/or "alimony" are selected, please provide the monthly amount received \$\_\_\_\_\_, and how long that income is expected to continue \_\_\_\_\_ years/months (circle one).

**B. Federal income tax bracket** Check one. ☐ 0% ☐ 10% ☐ 12% ☐ 22% ☐ 24% ☐ 32% ☐ 35% ☐ 37%

**C. Do you anticipate any significant changes to the Household Objectives below during the surrender charge period of this annuity? (Amounts entered should be limited to the amount changing.)**

- |                                    |                                                          |                                                         |
|------------------------------------|----------------------------------------------------------|---------------------------------------------------------|
| Increase in Annual Living Expenses | <input type="checkbox"/> Yes <input type="checkbox"/> No | If Yes, amount of annual Increase \$_____, in ___ years |
| Decrease in Annual Income          | <input type="checkbox"/> Yes <input type="checkbox"/> No | If Yes, amount of annual Decrease \$_____, in ___ years |
| Decrease in Liquid Assets          | <input type="checkbox"/> Yes <input type="checkbox"/> No | If Yes, amount of Decrease \$_____, in ___ years        |





## FINANCIAL OBJECTIVES (continued)

**D. What is your experience with financial products, including investment, annuity and insurance holdings?** Check one.

None to Limited

Limited to Moderate

Moderate to Extensive

← ☐ ☐ ☐ →

**E. What is your general risk tolerance?** Check one. If Aggressive is selected, please explain how this annuity fits your risk tolerance.

Conservative

Moderately conservative

Moderate

Moderately aggressive

Aggressive

← ☐ ☐ ☐ ☐ ☐ →

**Aggressive Risk Tolerance Explanation** \_\_\_\_\_

**F. How long do you plan to keep this annuity?** ☐ 0-5 years ☐ 6-10 years ☐ More than 10 years

## SOURCE OF FUNDS

**G. Is any of the premium intended for this annuity from a reverse mortgage?** ☐ Yes ☐ No

**H. Are any of the funds being used to purchase this annuity from any of the non-replacement sources listed below? If yes, indicate by checking this box.** ☐ Yes

*If the above box is not selected, Athene will assume the non-replacement source of funds is not applicable. Question I must be completed if Question H is left blank.*

**Do not include any assets held outside of the US or earnings originating outside of the US.**

- \*Checking/Savings
- Certificate of Deposit
- Stocks/Bonds/Mutual Funds
- Money Market/Brokerage Account
- IRA (Non-Annuity)
- 403(b) Group Annuity
- Group & Individual 403(b)/457(b) Mutual Funds
- 401k/Pension Plan
- Thrift Savings Plan

\*If **\$250,000 or more is coming from a checking/savings account**, what is the origin of the funds prior to being placed in the checking/savings account? \_\_\_\_\_

**If the source of funds are from a non-replacement source, are there penalties associated with this funding source?** \*Penalties include processing fees, forfeiture fees and other costs or fees. If Yes, please complete the table below. ☐ Yes ☐ No

| Company Name | Account Number | *Penalty Amount |
|--------------|----------------|-----------------|
|              |                | \$              |
|              |                | \$              |
|              |                | \$              |

**I. Are any of the funds being used to purchase this annuity from any of the replacement sources listed below? If yes, indicate by checking this box.** ☐ Yes

*If the above box is not selected, Athene will assume the replacement source of funds is not applicable. Question H must be completed if Question I is left blank.*

- Annuity
- IRA Annuity
- 403(b) Individual Annuity
- Life Insurance

## FINANCIAL STATUS

- All Financial Information should be completed based on household financials. If submitting multiple contracts for the household, all financial information should match. For personal owned contracts, DO NOT include assets from business accounts. For business owned contracts, DO NOT include assets from personal accounts.
- Primary residence/land, automobiles and personal property cannot be included as part of your financial information.
- Athene will calculate the net worth which is equal to "Household Liquid Assets (J) *plus* Household Non-Liquid Assets (K) *minus* Total Household Liabilities/Debt (L)"
- Please include ALL annuities currently held at Athene and outside of Athene. This should include all forms of annuities including IRA, 403(b) and 457(b) annuity plans.
- For annuities in or out of surrender term, provide the higher of the Accumulated Value or Surrender Value in sections J and K.
- ONLY US assets, liabilities/debt, income & expenses can be included below. Do not include any financials from outside of the U.S.

INCLUDE THE PROPOSED ANNUITY PREMIUM(S) BASED ON WHERE THE FUNDS ARE CURRENTLY HELD

**LEAVING QUESTIONS BLANK IS NOT ALLOWED AND WILL RESULT IN CUSTOMER CORRECTIONS.**

**"0," "N/A" OR "--" ARE ALLOWED**

| J. Household Liquid Assets                                                                                                                                     |    | K. Household Non-Liquid Assets                                                                                                                              |    |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------|----|-------------------------------------------------------------------------------------------------------------------------------------------------------------|----|
| Checking/Savings                                                                                                                                               | \$ | Cash Value of Life Insurance                                                                                                                                | \$ |
| IRA (Non-Annuity)<br><b>(if age 59 1/2 or above)</b>                                                                                                           | \$ | IRA (Non-Annuity)<br><i>(include B shares)</i> <b>(if under age 59 1/2)</b>                                                                                 | \$ |
| Certificates of Deposit                                                                                                                                        | \$ | Real Estate Equity<br><i>(exclude primary residence/home/land)</i>                                                                                          | \$ |
| 403(b)/457(b) Mutual Funds<br><i>(Including group and individual mutual funds)</i>                                                                             | \$ | 403(b)/457(b) Mutual Funds<br><i>(Including group and individual mutual funds)</i>                                                                          | \$ |
| Stocks/Bonds/Mutual Funds<br><i>(excluding B shares, 403(b) mutual funds and 457(b) mutual funds)</i>                                                          | \$ | Annuities in Surrender Term<br><b>(for all ages)</b><br><i>(including IRA annuities, 457(b) annuities and Group/Individual 403(b) annuities)</i>            | \$ |
| Annuities out of Surrender Term<br><b>(if age 59 1/2 or above)</b><br><i>(including IRA annuities, 457(b) annuities and Group/Individual 403(b) annuities)</i> | \$ | Annuities out of Surrender Term<br><b>(if under age 59 1/2)</b><br><i>(including IRA annuities, 457(b) annuities and Group/Individual 403(b) annuities)</i> | \$ |
| 401K<br><b>(if age 59 1/2 or above and separated from service)</b>                                                                                             | \$ | 401K<br><b>(if under age 59 1/2 and/or not separated from service)</b>                                                                                      | \$ |
| Thrift Savings Plan (TSP)<br><b>(if age 55 or above and separated from service)</b>                                                                            | \$ | Thrift Savings Plan (TSP)<br><b>(if under age 55 and/or not separated from service)</b>                                                                     | \$ |
| Money Market/Brokerage Account<br><i>(excluding B shares)</i>                                                                                                  | \$ |                                                                                                                                                             |    |
| Cash/Precious Metals<br><i>(excluding jewelry, coins, etc.)</i>                                                                                                | \$ |                                                                                                                                                             |    |

**FINANCIAL STATUS** - (continued)

**L. Do you have any existing liabilities and obligations?** (E.g. credit card debt, student loans, permanent life insurance premiums, home equity loan/HELOC, personal loan, medical, 2<sup>nd</sup>/3<sup>rd</sup> home mortgage, etc. Exclude any liabilities and obligations from primary residence/home mortgage and automobiles.

☐ Yes ☐ No **If yes, please list below.**

| Type of Liability                                                                     | If "Other" is Selected, Please Describe (DO NOT include primary residence/home mortgage and/or automobile debt) | Current Balance | Monthly Payment | Remaining Term of Liability<br># of months remaining |
|---------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------|-----------------|-----------------|------------------------------------------------------|
| Credit Card Debt                                                                      |                                                                                                                 | \$              | \$              | # of months remaining ____                           |
| Student Loan Debt                                                                     |                                                                                                                 | \$              | \$              | # of months remaining ____                           |
| 2nd, 3rd, etc. Home Mortgage                                                          |                                                                                                                 | \$              | \$              | # of months remaining ____                           |
| Permanent Life Insurance Premiums                                                     |                                                                                                                 | \$              | \$              | # of months remaining ____                           |
| Home Equity Loan/HELOC                                                                |                                                                                                                 | \$              | \$              | # of months remaining ____                           |
| Personal Loan                                                                         |                                                                                                                 | \$              | \$              | # of months remaining ____                           |
| Medical                                                                               |                                                                                                                 | \$              | \$              | # of months remaining ____                           |
| Other                                                                                 |                                                                                                                 | \$              | \$              | # of months remaining ____                           |
|                                                                                       |                                                                                                                 |                 |                 |                                                      |
| <b>Total Liabilities</b> (this should equal all figures listed under current balance) |                                                                                                                 | \$              |                 |                                                      |

|                                                                                                                                                                                                                                                                                                                                  |  |                                                          |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|----------------------------------------------------------|
| <b>M. Total Annual Household Income</b> (E.g. Salary, social security payments, pension/retirement benefits, investment, and rental income, etc.) <i>DO NOT</i> include income currently earned on the funds being used to purchase this annuity.                                                                                |  | \$ _____ annually                                        |
| <b>N. Total Annual Household Expenses</b> (E.g. Housing, transportation, insurance, food, health care, property taxes, cell phone, etc.) *Total Annual Household Expenses should more than exceed monthly liabilities and obligations.                                                                                           |  | \$ _____ annually                                        |
| <b>O. Do you or your spouse/domestic partner have any of the following:</b> <ul style="list-style-type: none"> <li>Existing Athene annuities?</li> <li>Other pending Athene annuities?</li> <li>Other applications being submitted to Athene with this application?</li> <li>Previously declined annuities at Athene?</li> </ul> |  | <input type="checkbox"/> Yes <input type="checkbox"/> No |
| <b>P. If question O is "yes," please list contract #s as well as spouse/domestic partner name and last 4 of SSN:</b>                                                                                                                                                                                                             |  |                                                          |
| Existing/Pending Athene Contract #s:                                                                                                                                                                                                                                                                                             |  |                                                          |
| Spouse/Domestic Partner Name:                                                                                                                                                                                                                                                                                                    |  |                                                          |
| Spouse/Domestic Partner Last 4 of SSN:                                                                                                                                                                                                                                                                                           |  |                                                          |

## ADVANTAGES AND DISADVANTAGES

**Q. Please select why you are purchasing the Athene annuity and how the annuity will assist you in meeting your needs and objectives.** Check all that apply.

- |                                                   |                                                           |                                                       |
|---------------------------------------------------|-----------------------------------------------------------|-------------------------------------------------------|
| <input type="checkbox"/> Accumulation/Growth      | <input type="checkbox"/> Principal Protection             | <input type="checkbox"/> Pass Assets to Beneficiaries |
| <input type="checkbox"/> Indexed Strategy Options | <input type="checkbox"/> Tax Deferral                     | <input type="checkbox"/> Provides Guarantees          |
| <input type="checkbox"/> Liquidity                | <input type="checkbox"/> Single Premium Immediate Annuity |                                                       |

### PLEASE SELECT RIDER NEEDS AND OBJECTIVES BELOW, IF APPLICABLE

- **RIDER(S) WITHOUT CHARGES:** If the **rider is included at NO CHARGE**, please **ONLY** select the applicable rider(s) below if that is a customer need/objective.
- **RIDER(S) WITH CHARGES:** If the annuity you are purchasing has a **rider FOR A CHARGE**, the applicable rider **MUST** be selected below or it will require customer corrections.

- |                                                  |                                              |                                                   |
|--------------------------------------------------|----------------------------------------------|---------------------------------------------------|
| <input type="checkbox"/> Lifetime Income Rider   | <input type="checkbox"/> Death Benefit Rider | <input type="checkbox"/> Enhanced Liquidity Rider |
| <input type="checkbox"/> Return of Premium Rider |                                              |                                                   |

**\*If a rider is selected above that is not available on the product being purchased, Athene will be unable to accept the application.**

**R. Please provide the disadvantages you discussed with your producer in selecting this annuity.** Check all that apply.

- |                                                                   |                                                               |
|-------------------------------------------------------------------|---------------------------------------------------------------|
| <input type="checkbox"/> Surrender Charges/Withdrawal Charge Term | <input type="checkbox"/> Limited Penalty Free Withdrawals     |
| <input type="checkbox"/> Limited Growth Potential                 | <input type="checkbox"/> Additional Contributions Not Allowed |

## OWNER(S)' CONFIRMATION

1. Do you intend to apply for means-tested government benefits, including, but not limited to, Medi-Cal or the Veterans Aid and Attendance benefit? ☐ Yes ☐ No
2. If yes, are you purchasing this annuity in order to qualify for means-tested government benefit? ☐ Yes ☐ No
3. Do you have a reverse mortgage? ☐ Yes ☐ No

**Athene requires that your producer determine whether the purchase of this annuity is appropriate under the standard of care (i.e., suitability or best interest) applicable to the transaction as determined by law. Athene relies on the information presented on this form to validate whether the annuity purchase is appropriate for you under the same standard of care (i.e., suitability or best interest).**

**By signing below, I (and the Joint Owner, if any) acknowledge and attest that:**

- I have reviewed the Customer Identification Notice (form 10200) and agree with the terms of the notice.
- To the best of my knowledge and belief, the information I provided regarding my financial status, tax status, financial objectives, identification information and any other information requested by my producer is complete and accurate. I further acknowledge and agree that my failure to provide true and complete information may affect the ability of my producer and Athene to determine whether the annuity applied for meets the appropriate standard of care applicable to this transaction, and may limit the protection provided to me under such standard of care.
- Neither the Company nor its representatives offer legal or tax advice. I have been advised to consult my own personal attorney or tax advisor on any tax matters. I am aware that any withdrawals taken from the annuity may result in a taxable event.
- I believe the annuity I am applying for is suitable and effectively addresses my financial situation, insurance needs and financial objectives.
- My decision to purchase this annuity was based on my producer's recommendation and I was provided with a written record of this recommendation as well as the basis for the recommendation from my producer. I attest that the written recommendation and the basis for the recommendation is accurately reflected in this form. I further attest that my producer informed me of the features of the annuity and that I have discussed and considered the advantages and disadvantages of this annuity and riders or other options with this annuity. Based upon that information, I believe I would benefit from those features, from any riders or other options of the annuity, from the annuity as a whole, and if I am replacing or existing an annuity or life policy, the transaction as a whole.
- I understand and accept that I could lose some of my principal if I surrender the annuity I am purchasing during the withdrawal charge period.
- I understand and accept that my interest credits may fluctuate, if applicable for the annuity I have applied for and/or the strategy allocation I have selected.
- I am aware that any withdrawals taken from the annuity may result in a taxable event. I further acknowledge and agree that the annuity I am applying for is a long-term contract that will have a withdrawal charge on any withdrawals over the free withdrawal amount during the withdrawal charge period as provided in the contract.

-----  
Owner's Signature

-----  
Date (MM/DD/YYYY)

-----  
Joint Owner's Signature

-----  
Date (MM/DD/YYYY)

## PRODUCER'S CONFIRMATION AND ACKNOWLEDGEMENTS

**1. I am recommending and believe this annuity product is suitable and in the consumer's best interest because it meets the consumers needs and objectives for:** *Check all that apply*

- |                                                   |                                                  |                                                           |
|---------------------------------------------------|--------------------------------------------------|-----------------------------------------------------------|
| <input type="checkbox"/> Accumulation/Growth      | <input type="checkbox"/> Principal Protection    | <input type="checkbox"/> Pass Assets to Beneficiaries     |
| <input type="checkbox"/> Indexed Strategy Options | <input type="checkbox"/> Tax Deferral            | <input type="checkbox"/> Provides Guarantees              |
| <input type="checkbox"/> Liquidity                | <input type="checkbox"/> Lifetime Income Rider   | <input type="checkbox"/> Death Benefit Rider              |
| <input type="checkbox"/> Enhanced Liquidity Rider | <input type="checkbox"/> Return of Premium Rider | <input type="checkbox"/> Single Premium Immediate Annuity |
| <input type="checkbox"/> Other (describe) _____   |                                                  |                                                           |

**By signing below, I acknowledge and attest that:**

- I verified the identity of the owner(s)' and believe the information the owner(s) provided to me regarding his/her/ their identity is true and accurate.
- I made a reasonable effort to obtain information from the owner(s) concerning the owner(s)' financial status, tax status, financial objectives, and such other information required or considered reasonably appropriate under the standard of care applicable to this transaction.
- To the best of my knowledge and belief, the information on the form is true and complete, and was obtained prior to the purchase of the annuity.
- Based on the information the owner(s) provided and based on all the circumstances known to me at the time the recommendation was made, I believe I have a reasonable basis to believe the annuity being applied for and (if applicable) the exchange or replacement of an existing annuity or life policy meet the standard of care applicable to this transaction. I further attest I have communicated the basis or bases of my recommendation to the owner(s).
- I attest that the owner(s)' decision to purchase this annuity was based on my recommendation and that I provided the owner(s) with a written record of this recommendation and the basis for this recommendation, both of which are also documented in this form. I further attest I have considered and discussed with the owner(s), the advantages and disadvantages of features of this annuity, and riders or other options of the annuity, and the transaction as a whole.
- I attest that I have a reasonable basis to believe that the applicant has been informed of various features of the annuity and riders or other options of the annuity, such as the potential surrender period and surrender charge, potential tax penalty if the consumer sells, exchanges, surrenders or annuitizes the annuity, mortality and expense fees, investment advisory fees, any annual fees, potential charges for riders or other options of the annuity, limitations on interest returns, potential changes in non-guaranteed elements of the annuity, insurance and investment components and market risk, and the transaction.
- I have complied with the standard(s) of care applicable to this transaction, including but not limited to satisfying all care, disclosure, conflict of interest, and documentation obligations required of me by such standard of care in connection with the owner(s) purchase of this annuity, any exchange or replacement of an existing annuity or life policy and my recommendation(s) in relation thereto.
- I agree to maintain the records of the information collected from the owner(s), my recommendation, and the basis for my recommendation consistent with the applicable standard of care, my contractual obligations and Athene's policies and procedures. I understand that any reproduction of the actual document may be used to maintain these records. I further acknowledge and agree to make such records available for review upon request of Athene or by any regulatory body as required.

\_\_\_\_\_  
Producer's Signature

\_\_\_\_\_  
Date (MM/DD/YYYY)

# Standard of Care Guidelines for Producers - Suitability and Best Interest



## Intent of the Standard of Care Guidelines for Producers

To help you make appropriate recommendations under the applicable standard of care, Athene Annuity and Life Company (the "Company" or "Athene") is providing the following information about Athene's standard of care review process. The standard of care program was put in place to benefit both you and the consumer and the following guidelines are designed to identify and discourage inappropriate sales and replacements in order to help you meet regulatory requirements.

This document includes specific scenarios you may encounter when collecting information to make an appropriate determination under the applicable standard of care and is intended to help you understand Athene's guidelines if you are considering recommending an Athene annuity. The guidelines are not all inclusive and are subject to change. Adherence to the guidelines does not guarantee Athene will determine the purchase of an annuity or replacement of a life insurance policy or annuity suitable for the consumer.

## Company Position

Athene is committed to meeting the needs of consumers through appropriate annuity sales. All recommendations for the purchase of an annuity, or the exchange of an annuity or life insurance product, should be appropriate for the consumer under the applicable standard of care based on information known by the producer at the time the recommendation is made. Prior to making a recommendation, the producer must obtain relevant information from consumers regarding their insurance needs and financial objectives. When giving a recommendation you should also remind consumers to discuss their annuity purchase with their tax advisor or legal professional.

For additional information about Athene's standard of care policies, please see "Doing Business with Athene Producer Guide" (form [19608](#)).

## Standard of Care Review Process

The objective of Athene's Standards Review Team (SRT) is to review applications to ensure appropriate documentation exists to support the recommended sale. The Athene standard of care review process is designed for compliance with applicable regulations by documenting the producer's reasonable basis for making the recommendation. Please note that if needed, Athene may contact you during the standard of care review to request additional information and/or form corrections from either yourself and/or the consumer.

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6. Suitability Decline Reconsiderations
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## 1. Consumer Contact

You and the consumer(s) should be aware that Athene may contact the consumer(s) by phone as part of our standard of care review. For consumers purchasing a fixed indexed annuity, Athene routinely calls all consumers aged 75 and above and all consumers applying for an internal replacement. Additionally, Athene reserves the right to contact any consumer directly as part of its standard of care review.

For additional information regarding consumer contact, please see form 21841.

## 2. Householding

Householding is defined as "applicant and applicant's spouse or domestic partner, as applicable by state law." When Athene is performing a standard of care review, the producer and consumer are required to complete the suitability information based on the household financials. If multiple household applications are being submitted at the same time, the financials should 100% match for the household. If the household applies for an annuity and then submits another application at a later date, any change in financials should be explainable by the amount of disposable monthly income saved for that same period of time. If household financials do not match or are not explainable by the amount of disposable monthly income saved for that same period of time, Athene will require the consumer(s) to correct the financial information prior to continuing our review or provide documentation for the difference in financials.

## 3. Suitability Guidelines and Declines

There are situations where Athene will decline to issue a contract because the recommendation does not comply with the applicable standard of care. Examples of those situations may include, but are not limited to:

### a. Annuity to Net Worth Ratio

- i. For consumers with a net worth of \$100,000 or under, Athene does not accept applications for consumers who currently have or would have higher than 50% of their net worth in annuities.
- ii. For consumers with a net worth above \$100,000, Athene will accept up to 70% of their net worth in annuities. Approval up to 75% is at the discretion of Athene.
- iii. Athene does not accept applications for consumers who currently have or would have 76% or higher of their net worth in annuities.
- iv. Annuity to net worth ratio includes both annuities in surrender term and out of surrender term.
- v. This includes all forms of annuities, including, but not limited to: Fixed, Fixed Indexed, Variable, Registered-Indexed Linked, IRA, 403(b) and 457(b) annuity plans.
- vi. Calculation: see 5.b.i

### b. Surrender Loss on Annuity and/or Life Insurance Replacements

- i. Athene will accept replacements that would result in a net surrender loss of 2% or less, after any applicable Athene premium bonus, excluding CA, MN, and NY.
- ii. Athene may potentially accept replacements that would result in net surrender loss up to 6%, after any applicable Athene premium bonus, with appropriate rationale and documentation. Approval of up to 6% net surrender loss, after any applicable Athene premium bonus, is at the discretion of Athene and will require two separate letters of explanation:
  1. Physically signed and dated letter of explanation from the owner(s) stating their understanding of the surrender loss and how the replacement is in their best interest.
  2. Physically signed and dated letter of explanation from the writing producer explaining why the application is suitable and in the best interest of the consumer.
- iii. Athene will not accept any replacements that would result in a net surrender loss in excess of 6%, after any applicable Athene premium bonus.
- iv. Income Base Bonuses and/or Benefit Base Bonuses cannot be used to offset surrender loss.
- v. California – after any applicable premium bonus, Athene does not allow any replacements that would result in a net surrender loss.

- vi. New York – Athene does not allow any replacements that would result in a net surrender loss.
- vii. Minnesota – Athene does not allow solicitation or submission of an application until the initial surrender term period of the existing annuity and/or life insurance has passed. This includes full, partial and penalty free replacements. In addition, Athene does not allow any replacements that would result in a net surrender loss.
- viii. Calculation: see 5.c.i

### **c. Liquid Assets**

- i. A consumer under the age of 59.5 must have a minimum of three months of expenses covered by liquid assets.
  - 1. Liquid assets can include:
    - a. Checking/savings
    - b. Stocks/Bonds/Non-Qualified Mutual Funds (excluding B shares)
    - c. Non-qualified certificate of deposit
    - d. Non-qualified money markets/brokerage accounts (excluding B shares)
    - e. Cash/Precious Metals (excluding jewelry, coins, etc.)
    - f. Thrift Savings Plan (if age 55 or above and separated from service)
  - 2. Liquid assets cannot include:
    - a. Assets where the consumer would pay a penalty, charge, fee, etc. for accessing the funds.
- ii. A consumer aged 59.5 or above must have a minimum of six months of expenses covered by liquid assets.
  - 1. In addition to the liquid assets allowed for under age 59.5, consumers aged 59.5 or above can include:
    - a. Qualified assets
    - b. Annuities out of the surrender term
    - c. Penalty free withdrawals
    - d. 401k funds, if the consumer is separated from service.
  - 2. Liquid assets cannot include:
    - a. Assets where the consumer would pay a penalty, charge, fee, etc. for accessing the funds.
- iii. Athene does not allow the consumer's personal property to be included in their household liquid assets. Examples of personal property include, but are not limited to:
  - 1. Firearms
  - 2. Furniture
  - 3. Appliances
  - 4. Household items
  - 5. Clothing (including purses, shoes, etc.)
  - 6. Jewelry (including rings, earrings, watches, bracelets, necklaces, etc.)
- iv. Other items that cannot be included in a consumers liquid assets include, but are not limited to:
  - 1. Health savings account (HSA)
  - 2. Cash value of life insurance
  - 3. Home equity lines of credit (HELOC)
  - 4. Lines of credit
  - 5. Anything where an interest rate is being paid.
  - 6. Funds from a reverse mortgage
  - 7. Equipment/tractors/tools/farm equipment
  - 8. Antiques
  - 9. Automobiles (including motorcycles, boats, ATVs, classics, vintage, RVs, etc.)

**d. Household Net Worth**

- i. Net worth cannot include:
  - 1. Primary residence and/or the land it is on
  - 2. Automobiles (including motorcycles, boats, ATVs, classics, vintage, RVs, etc.)
  - 3. Personal property (as outlined in the Liquid Assets section)
- ii. Calculation: see 5.a.i

**e. Negative Monthly Income**

- i. Athene does not accept applications for consumers who have, or would have, negative monthly income.
- ii. Calculation: see 5.h.i

**f. Disposable Monthly Income**

- i. Athene requires a consumer to have a minimum of \$500 disposable income each month after all expenses have been paid.
- ii. If the consumer has between \$1 and \$499 disposable income each month after all expenses have been paid, Athene will require a minimum of twelve months' worth of income to be covered by liquid assets.
- iii. Calculation: see 5.g.i

**g. Unemployment**

- i. Athene does not allow consumers who are currently unemployed to purchase an annuity, unless the consumer has a spouse (or domestic partner, if applicable under state law) with monthly income sufficient to cover all household monthly expenses, excluding any unemployment income.

**h. Reverse Mortgage**

- i. Athene does not allow annuities to be funded by a reverse mortgage or mortgage related transaction.

**i. Income Rider (including 2-tiered annuity contracts) to Income Rider Replacements**

- i. Athene must provide a higher guaranteed income payout than the annuity being replaced at the time the consumer anticipates starting income.
- ii. If the new Athene annuity does not provide a higher guaranteed income payout, that replacement will be declined.

**j. Income Rider Forfeiture**

- i. If the consumer currently has an annuity with an income rider (or two-tiered annuity contract) and they will be replacing that with an Athene product that does not offer an income rider, this is deemed an income rider forfeiture.
- ii. Athene does not allow income rider forfeitures where the variance between the income rider value and the surrender value on the existing contract is greater than 75%.
- iii. Income base bonuses and/or benefit base bonuses cannot be used to offset income rider loss.
- iv. The consumer must provide a detailed explanation on the product comparison worksheet describing what has financially changed since the current annuity with an income rider was purchased such that the income it would provide is no longer needed now or in the future.
  - 1. Generic answers, such as the below examples, are not acceptable (this is not an all-inclusive list):
    - a. Their needs and objectives have changed.
    - b. They no longer need the income rider or payout it would provide.
    - c. They never understood how the income rider worked.
    - d. They didn't know they had an income rider.
    - e. The income rider product was mis-sold to them.
    - f. They no longer want to pay a fee or charge for the income rider.
    - g. They no longer want market risk.
  - 2. If the consumer is not able to provide a detailed explanation for the income rider being forfeited, Athene will not be able to accept the replacement.
- v. Calculation: see 5.e.i

## **k. Death Benefit Loss**

### **i. Annuities**

1. Death benefit value includes any value payable upon death:
  - a. Lump sum death benefit value
  - b. Annuitized death benefit value
  - c. Lump sum death benefit rider value
  - d. Annuitized death benefit rider value
  - e. Income rider value payable as a death benefit in lump sum
  - f. Income rider value payable as a death benefit over a period of time
2. Athene will accept replacements if the variance between the surrender value (after any applicable Athene premium bonus) and the death benefit and/or death benefit rider value is:
  - a. Consumer(s) age 69 and under: within a variance of 10%
  - b. Consumer(s) age 70-74: within a variance of 5%
  - c. Consumer(s) age 75 and above: within a variance of 3%
3. For replacements where Athene will provide a higher guaranteed income payout, Athene will provide an income rider that is not currently available to the consumer or where a variable annuity is being replaced for principal protection, Athene will accept replacements if the variance between the surrender value (after any applicable Athene premium bonus) and the death benefit and/or death benefit rider value is:
  - a. Consumer(s) age 69 and under: within a variance of 20%
  - b. Consumer(s) age 70-74: within a variance of 15%
  - c. Consumer(s) age 75-79: within a variance of 10%
  - d. Consumer(s) age 80 and above: within a variance of 3%
4. Athene may potentially accept replacements that would result in death benefit/death benefit rider loss up to 2x current guidelines with appropriate rationale and documentation. Approval of up to 2x current guidelines is at the discretion of Athene and will require two separate letters of explanation:
  - a. Physically signed and dated letter of explanation from the owner(s) stating their understanding of the death benefit loss and how the replacement is in their best interest.
  - b. Physically signed and dated letter of explanation from the writing producer explaining why the application is suitable and in the best interest of the consumer.
5. An Athene death benefit rider that is payable over 5-10 years cannot be used to offset a lump sum death benefit value with the existing annuity.
6. Calculation: see 5.d.1

### **ii. Life Insurance**

1. Athene does not accept any replacements from a life insurance contract if the death benefit variance is over 700%.
2. The consumer must provide a detailed explanation on the product comparison worksheet describing what has changed since the life insurance policy was purchased such that they no longer need or want the death benefit provided by such policy.
  - a. Generic answers are not accepted as specific details must be provided.
  - b. If the consumer is not able to provide a detailed explanation for the life insurance forfeiture, Athene will not be able to accept the replacement.
3. Calculation: See 5.f.i

## **I. Consumer Needs/Objectives**

- i. If the consumer needs/objectives selected on the applicable Suitability and Best Interest Worksheet are not met by the product, Athene will decline the application.

**m. Replacements Solicited and Submitted Prior to an Upcoming Anniversary Date**

- i. External replacements solicited and written prior to an upcoming anniversary date.
  - 1. If an external replacement is being recommended and Athene is expected to wait until an upcoming anniversary date to process and/or transfer the funds, suitability will not be reviewed and/or approved prior to the anniversary date.
    - a. If the application/forms signature date is 30 days or less from the anniversary date of the contract being replaced, Athene will require an updated PCW from the consumer. The updated PCW can either be a new PCW signed and dated after the anniversary date or the current PCW can be corrected, initialed, and dated by the consumer after the anniversary date. Athene will also require a complete statement from after the anniversary date.
    - b. If the application/forms signature date is more than 30 days from the anniversary date, the application will be declined and Athene will require the contract to be resolicited, rewritten, and resubmitted after the anniversary date. All new paperwork will be required including a complete statement from after the anniversary date.
- ii. Internal replacements solicited and written prior to an upcoming anniversary date.
  - 1. If an internal replacement is being recommended and Athene is expected to wait until an upcoming anniversary date to process and/or transfer the funds, this will only be allowed if the following conditions are met:
    - a. The replacement, as of the signature date on the forms, already meets all internal replacement guidelines.
    - b. The application/forms signature date is no more than 30 days from the anniversary date.
  - 2. If the internal replacement does not currently meet internal replacement guidelines and/or the signature date is more than 30 days from the anniversary date, the application will be declined and Athene will require the contract to be resolicited, rewritten, and resubmitted after the anniversary date. All new paperwork will be required.

**n. High Fixed Rate Replacements**

- i. Athene does not allow replacement of annuities or life insurance if the current fixed rate is 5% or higher unless the consumer receives a higher fixed rate with the new Athene product.

**o. Suitability Client Calls/Consumer Contact**

- i. Athene will not approve an application if:
  - 1. The consumer demonstrates a general lack of awareness about the sales transaction including the benefits/features of the annuity and/or conditions, limitations, or restrictions on receiving funds from the Athene annuity.
  - 2. Their financial information, financial situation, future needs and/or objectives were not discussed with the writing producer prior to completing the application.
  - 3. If the producer who signs the application was not the producer or solicited, sold, and wrote the application.

**p. Outstanding Loans**

- i. If the consumer currently has a loan on the contract they are trying to replace, Athene will not allow the replacement until the loan has been satisfied.

**q. Lack of Information to Support the Sales Recommendation**

- i. Athene will not approve an application if we feel we do not have appropriate information to support the recommendation to the consumer.

**r. Inconsistent Information**

- i. Athene will not approve an application if we continue to receive inconsistent information from the producer, consumer(s) and/or the documentation being submitted.

**s. Minimum Timeframe Requirement for Annuity and/or Life Insurance Replacements**

- i. Athene does not accept replacements if the current annuity and/or life insurance contract was issued within the previous 24 months, including partial and penalty free withdrawals, or if the annuity has not yet reached its first crediting anniversary, whichever is longer.

**t. Long Term Care**

- i. An Athene annuity does not provide long term care (LTC) insurance nor is it a suitable substitute for such coverage. Therefore, an LTC benefit is not an acceptable reason to purchase an Athene annuity. Any reference to LTC will require producer and/or consumer corrections.

**u. California**

- i. Purchasing an Athene annuity to attempt to qualify for means-tested governments benefits in California is not allowed and will not be approved.

**v. Missouri**

- i. Athene is required to look back at the financials over the previous three years anytime we get a new application for a consumer's household. If the liquid assets and/or net worth have increased by more than the net disposable monthly income would have accounted for, Athene will require additional information from the consumer. If we are unable to get adequate information to account for the increase in liquid assets and/or net worth, Athene will decline that application.

**w. New York**

- i. Athene will not approve an application if:
  - 1. The consumer does not understand and/or does not accept that there are non-guaranteed elements in the annuity.
  - 2. The producer did not describe the limitations, if any, on the types of financial products they can offer before recommending the annuity.
  - 3. The producer did not determine, based on the consumer's objectives, risk tolerance, financial circumstances, and needs, that the purchase of a fixed annuity was in the consumer's best interest.
  - 4. In the producer's professional opinion, the annuity is not in the consumer's best interest, as compared to other annuity options.

## 4. Letters of Explanation (Producer and Consumer)

- a. During the suitability review process, if Athene determines that a producer and/or consumer letter of explanation could help with the suitability review, Athene will reach out to the producer asking for that to be submitted. Once received, Athene will review and make the suitability decision. Producers are encouraged to submit letters of explanation when they submit the initial application. The producer and/or consumer letters of explanation must be individualized and provide details for the consumer's specific situation. Submission of generic or repetitive rationale across consumers will not be accepted. Providing the requested letter of explanation does not guarantee the approval of any application as Athene reserves the right to decline any application regardless of a letter of explanation being provided.

## 5. Loss Calculations

**a. Household Net Worth:**

- i. Household Liquid Assets + Household Non-Liquid Assets - Household Liabilities/Debt
  - 1. Ex: liquid assets = \$150,000, non-liquid assets = \$400,000, liabilities/debt = \$50,000
    - a.  $\$150,000 + \$400,000 - \$50,000 = \$500,000$  total household net worth

**b. Annuity to Net Worth Ratio**

- i. Total of all Household Annuities / Household Net Worth
  - 1. Ex: household annuities = \$325,000, household net worth = \$500,000
    - a.  $\$325,000 / \$500,000 = 65\%$  annuity to net worth ratio

**c. Surrender Loss**

- i.  $(\text{Surrender Value (after any applicable premium bonus)} - \text{Accumulated Value}) / \text{Accumulated Value}$ 
  - 1. Ex: surrender value = \$285,000, accumulated value = 325,000, premium bonus = 10%
    - a. Surrender value after premium bonus =  $\$285,000 + 10\% = \$313,500$
    - b.  $(\$313,500 - \$325,000) / \$325,000 = - 3.54\%$  surrender loss

#### **d. Death Benefit Loss**

- i.  $(\text{Surrender Value (after any applicable premium bonus)} - \text{Death Benefit Value}) / \text{Surrender Value (after any applicable premium bonus)}$ 
  - 1. Ex: surrender value = \$285,000, death benefit value = \$350,000, premium bonus = 10%
    - a. Surrender value after premium bonus =  $\$285,000 + 10\% = \$313,500$
    - b.  $(\$313,500 - \$350,000) / \$313,500 = -11.64\%$  death benefit variance

#### **e. Income Rider Loss**

- i.  $(\text{Surrender Value (after any applicable premium bonus)} - \text{Income Rider Value}) / \text{Surrender Value (after any applicable premium bonus)}$ 
  - 1. Ex. surrender value = \$285,000, income rider value = \$450,000, premium bonus = 10%
    - a. Surrender value after premium bonus =  $\$285,000 + 10\% = \$313,500$
    - b.  $(\$313,500 - \$450,000) / \$313,500 = -43.54\%$  income rider variance

#### **f. Life Insurance Loss**

- i. Death Benefit Value / Surrender Value (after any applicable premium bonus)
  - 1. Ex. death benefit value = \$750,000, surrender value = \$180,000, premium bonus = 10%
    - a. Surrender value after premium bonus =  $\$180,000 + 10\% = \$198,000$
    - b.  $\$750,000 / \$198,000 = 379\%$  death benefit variance

#### **g. Disposable Monthly Income**

- i.  $(\text{Total Annual Household Income} - \text{Total Annual Household Expenses}) / 12$ 
  - 1. Ex. annual household income = \$150,000, annual household expenses = \$120,000
    - a.  $(\$150,000 - \$120,000) / 12 = \$2,500$  disposable monthly income

#### **h. Negative Monthly Income**

- i.  $(\text{Total Annual Household Income} - \text{Total Annual Household Expenses}) / 12$ 
  - 1. Ex. annual household income = \$150,000, annual household expenses = \$170,000
    - a.  $(\$150,000 - \$174,000) / 12 = -\$2,000$  negative monthly income

## **6. Suitability Decline Reconsiderations**

For all declined cases where the producer is looking for additional information regarding the decline reason and/or asking to have the decline decision reconsidered, Athene has created a decline reconsideration request form that must be completed and sent in for review. Along with the completed and signed reconsideration form, the producer must provide any corrections to the suitability form and/or product comparison worksheet (PCW) that led to the suitability decline. Each correction to the suitability form and/or PCW must be initialed and dated by the owner(s). In addition to the completed reconsideration form and corrections to the suitability form and/or PCW, the producer must also provide documentation supporting all changes being made. All changes to the suitability form and/or PCW must be accurate and consistent with the documentation provided to Athene. Any inconsistencies in values, rates, etc. will not be accepted and could lead to Athene maintaining the decline decision. All requirements must be submitted together and failure to do so could lead to Athene being unable to reconsider the application.

## 7. Suitability by Ownership Type

- a. Individual Ownership – the Customer Identification and Suitability Confirmation Worksheet (Suitability Form) should be completed for the owner.
- b. Joint Ownership – complete a separate Suitability Form if not the owner's spouse or domestic partner, as applicable by state law.
- c. Revocable Trust Ownership – complete the Suitability Form on behalf of the grantor/settlor.
- d. Irrevocable Trust Ownership – complete the employment status and date of birth on behalf of the annuitant. The remainder of the Suitability Form should be completed on behalf of the trust.
- e. All Other Non-Natural Owners – complete the employment status and date of birth on behalf of the annuitant. The remainder of the Suitability Form should be completed on behalf of the entity.
- f. Business assets and individual assets cannot be commingled.
- g. Business assets can only be included if the business is the owner of the annuity.
- h. Individual assets can only be included if the individual is the owner of the annuity.

## 8. Summary

Athene's standard of care program is designed to benefit consumers and help producers meet and/or exceed regulatory requirements. It is required that every recommendation you make to purchase or exchange an Athene annuity product be appropriate for the consumer under the applicable standard of care. A decision to recommend an annuity should be based on a careful analysis of the information gathered from the consumer. By making sure consumers understand the features, benefits, risks, costs, and fees associated with the annuity, you can help ensure consumer satisfaction and compliance with regulatory requirements.

## 9. Questions

The Athene Sales Desk is happy to discuss the appropriateness of a potential sale with you. While we cannot make a determination that a recommendation would satisfy the applicable standard of care over the phone, we can discuss the case and let you know of any questions or concerns we may have based on the information you share. Simply call the Sales Desk at 888-Annuity (266-8489) during normal business hours or visit Athene Connect, our producer website.



**Athene Life and Annuity Company**  
West Des Moines, IA 50266-3862

**Athene Annuity & Life Assurance  
Company of New York**  
Pearl River, NY 10965

Athene.com



# Athene Performance Elite® Index Strategy Disclosure and Allocation Form



## Athene Annuity and Life Company

**Mailing Address:** PO Box 1555, Des Moines, IA 50306-1555

**Overnight Address:** 7700 Mills Civic Parkway, West Des Moines, IA 50266-3862

**Customer Contact Center** - Tel: 888-266-8489 Fax: 866-709-3922

### **THINGS YOU SHOULD KNOW**

This form contains important information regarding the interest crediting strategies available on your annuity Contract. Your premium will be allocated based on your selections. It is within the Company's sole discretion to set rates, such as Cap Rates, Participation Rates and Annual Strategy Charge Rates, subject to any minimum or maximum guarantees contained in the Contract. Rates may change throughout the lifetime of your annuity. This form must be accompanied by the Index Strategy Disclosure Form, which provides additional information about the indices available.

**Fixed Strategy.** Premium allocated to the Fixed Strategy will be credited with a fixed interest rate declared by the Company and guaranteed for each Contract Year. This rate can change each Contract Year and will never be less than an annual interest rate of 0.25%. Interest is compounded daily. This strategy is not linked to the movement of an external market index.

**Index Strategies.** Premium allocated to one of the Index Strategies will receive interest calculated in reference to the upward movement, if any, of an external market index, modified by limitations such as a Cap Rate or a Participation Rate (explained below). The interest credited by the strategies may be different than the performance of the indices. The interest credits for each Index Strategy will be determined based upon the strategy or strategies you choose as described below. Interest credits are guaranteed to never be less than zero. Past activity of an external market index is not intended to predict future activity.

Keep in mind the Company may discontinue a strategy at any time during the life of your Contract. If you are allocated to the Manual Allocation and a strategy is discontinued, you may elect to have your funds allocated to one or more of your Contract's remaining strategies. If you make no allocation, all funds will be transferred to the Fixed Strategy. Please see the Strategy Discontinuation section under Additional Strategy Preset Considerations if you plan to select a Strategy Preset option.

Note that the provider of an external index has the right to change the methodology of index calculations at any time during the lifetime of your Contract. We strongly recommend that you monitor the publicly available index information to be informed of any changes to the index.

### **DEFINITIONS**

**Cap Rate.** The maximum rate of interest that may be applied to the change in the index value before interest is calculated. For example, if the applicable index increases by 5%, and there is a 3% Cap Rate, the interest credited would be 3%.

**Participation Rate.** A percentage which is applied to the change in the index value before interest is calculated. For example, if the applicable index increases by 5% and a 60% Participation Rate is applied, the interest credited would be 3%.

**Annual Strategy Charge Rate.** A percentage which is applied to the beginning Strategy Value for the Contract Year and deducted monthly from the Strategy Value. Only applicable to With Charge Index Strategies.

**Index Term Period.** The time-period over which any interest is calculated.

**Index Term End Date.** The last day of an Index Term Period and the date on which interest credits, if any, are calculated for an Index Strategy.

### **AVAILABLE INDEX STRATEGIES**

1-Year and 2-Year Point-to-Point strategies are currently available with the following indices: AI Powered Global Opportunities Index (AIGO)<sup>1</sup>, AI Powered US Equity Index (AIPEX)<sup>1</sup>, BNP Paribas Multi Asset Diversified 5 Index (BNPIMAD5)<sup>1</sup>, Nasdaq FC Index (BOFANFCC)<sup>1,2</sup>, S&P 500 FC Index (SPXFCDE)<sup>1,3</sup> and UBS Innovative Balanced Index (UBSIBAL)<sup>1</sup>. The S&P 500® Index (SPX) is only available in 1-Year Point-to-Point Index Strategies.

<sup>1</sup> Because the index applies a volatility control mechanism, the range of both the positive and negative performance of the index is limited.

<sup>2</sup> The index features a performance control mechanism that limits its maximum growth potential within any given month. Consumers may therefore forgo part of the growth of the index if it rises beyond this limit within a month.

<sup>3</sup> S&P 500 FC TCA 0.50% Decrement Index (USD) ER



**How interest is credited:** Interest credits applied on the Index Term End Date are based on any positive percentage change in the selected index from the beginning to the end of the 1-Year or 2-Year Index Term Period (as elected by you), subject to the applicable Cap Rate or Participation Rate.

**Cap Rate:** For the S&P 500 (SPX) Index Strategies, the Company will declare a Cap Rate at the beginning of each Index Term Period, which is guaranteed never to be less than 0.5%. For all other strategies, the Cap Rate does not apply.

**Participation Rate:** The Company will declare a Participation Rate at the beginning of each Index Term Period. For the S&P 500 (SPX) Index Strategies, the Participation Rate is guaranteed to never be less than 100%. For all other strategies, the Participation Rate is guaranteed to never be less than 10%.

**Annual Strategy Charge Rate:** Some strategies offer higher Participation Rates or Cap Rates in exchange for a charge. This charge rate is declared by the Company at the beginning of each Index Term Period and will never exceed the maximum guarantees contained in your Contract.

### **STRATEGY PRESET FEATURE**

Strategy Preset is a voluntary feature that automates (1) rebalancing your Accumulated Value based on a Diversified Target Blend of indices and (2) transfers between strategies based on your risk/return objectives and any Supplemental Allocations.

#### How it Works



The Diversified Target Blend is a diversified combination of several indices available in this product. It targets allocating among indices as follows:

- **20%** AI Powered Global Opportunities Index (AIGO)
- **10%** AI Powered US Equity Index (AIPEX)
- **20%** BNP Paribas Multi Asset Diversified 5 Index (BNPIMAD5)
- **15%** Nasdaq FC Index (BOFANFCC)
- **15%** S&P 500 FC Index (SPXFCDUE)
- **20%** UBS Innovative Balanced Index (UBSIBAL)

The portion allocated to each index is further divided into Index Strategies with different Index Term Periods, Strategy Charges and Participation Rates depending on which Strategy Preset option you choose (*Conservative*, *Balanced*, or *Growth*), as described below. The stated allocation percentages are targets only. We do not guarantee that you will achieve the targeted allocations exactly.

#### Allocation Options

You can choose to allocate to the *Conservative*, *Balanced*, or *Growth* Strategy Preset option.

The *Conservative*, *Balanced*, and *Growth* options were designed to meet different risk/return objectives. All three options have crediting strategies which mature every year, meaning there is potential for interest credits every year. The *Conservative* option utilizes only 1-Year strategies without a Strategy Charge. Both the *Balanced* and *Growth* options additionally utilize 2-Year strategies, which generally have higher growth potential. The *Growth* option uses strategies with a Strategy Charge, which have higher Participation Rates, and the *Balanced* option uses strategies without a Strategy Charge, which generally have lower Participation Rates than those with a Strategy Charge. The strategies and initial targeted allocations for each option are shown in the table below. The *Balanced* and *Growth* options will have allocations to 1-Year strategies only in the first and last years of the Withdrawal Charge period. The manner in which transfers occur between the 1-Year and 2-Year strategies is explained in the Rebalancing section below.



| Conservative                           |                                                  |                      |
|----------------------------------------|--------------------------------------------------|----------------------|
| Index Term Period and Strategy Charge  | Index/Ticker                                     | Initial Allocation % |
| 1-Year Point-to-Point (Without Charge) | AI Powered Global Opportunities (AIGO)           | 20.0%                |
|                                        | AI Powered US Equity (AIPEX)                     | 10.0%                |
|                                        | BNP Paribas Multi Asset Diversified 5 (BNPIMAD5) | 20.0%                |
|                                        | Nasdaq FC (BOFANFCC)                             | 15.0%                |
|                                        | S&P 500 FC (SPXFCdue)                            | 15.0%                |
|                                        | UBS Innovative Balanced (UBSIBAL)                | 20.0%                |
| Balanced                               |                                                  |                      |
| Index Term Period and Strategy Charge  | Index/Ticker                                     | Initial Allocation % |
| 1-Year Point-to-Point (Without Charge) | AI Powered Global Opportunities (AIGO)           | 10.0%                |
|                                        | AI Powered US Equity (AIPEX)                     | 5.0%                 |
|                                        | BNP Paribas Multi Asset Diversified 5 (BNPIMAD5) | 10.0%                |
|                                        | Nasdaq FC (BOFANFCC)                             | 7.5%                 |
|                                        | S&P 500 FC (SPXFCdue)                            | 7.5%                 |
|                                        | UBS Innovative Balanced (UBSIBAL)                | 10.0%                |
| 2-Year Point-to-Point (Without Charge) | AI Powered Global Opportunities (AIGO)           | 10.0%                |
|                                        | AI Powered US Equity (AIPEX)                     | 5.0%                 |
|                                        | BNP Paribas Multi Asset Diversified 5 (BNPIMAD5) | 10.0%                |
|                                        | Nasdaq FC (BOFANFCC)                             | 7.5%                 |
|                                        | S&P 500 FC (SPXFCdue)                            | 7.5%                 |
|                                        | UBS Innovative Balanced (UBSIBAL)                | 10.0%                |
| Growth                                 |                                                  |                      |
| Index Term Period and Strategy Charge  | Index/Ticker                                     | Initial Allocation % |
| 1-Year Point-to-Point With Charge      | AI Powered Global Opportunities (AIGO)           | 10.0%                |
|                                        | AI Powered US Equity (AIPEX)                     | 5.0%                 |
|                                        | BNP Paribas Multi Asset Diversified 5 (BNPIMAD5) | 10.0%                |
|                                        | Nasdaq FC (BOFANFCC)                             | 7.5%                 |
|                                        | S&P 500 FC (SPXFCdue)                            | 7.5%                 |
|                                        | UBS Innovative Balanced (UBSIBAL)                | 10.0%                |
| 2-Year Point-to-Point With Charge      | AI Powered Global Opportunities (AIGO)           | 10.0%                |
|                                        | AI Powered US Equity (AIPEX)                     | 5.0%                 |
|                                        | BNP Paribas Multi Asset Diversified 5 (BNPIMAD5) | 10.0%                |
|                                        | Nasdaq FC (BOFANFCC)                             | 7.5%                 |
|                                        | S&P 500 FC (SPXFCdue)                            | 7.5%                 |
|                                        | UBS Innovative Balanced (UBSIBAL)                | 10.0%                |

If you choose not to allocate 100% of your premium to a *Conservative*, *Balanced*, or *Growth* Strategy Preset option, you can choose to allocate a portion of your premium to two Supplemental Allocation strategies: the 1-Year Point-to-Point S&P 500 Index (SPX) Strategy (Without Charge) and the 1-Year Fixed Strategy. For example, you could have 90% allocated to the *Conservative* Strategy Preset option and 10% allocated to the 1-Year Fixed Strategy.

#### Initial Allocations

**The Strategy Preset feature is only available when allocating your premium at the purchase of your Contract and you cannot transfer into it at a later date. You can only select one Strategy Preset option.** For example, you cannot choose to allocate 50% of your premium to the *Conservative* Strategy Preset option and 50% of your premium to the *Balanced* Strategy Preset option.



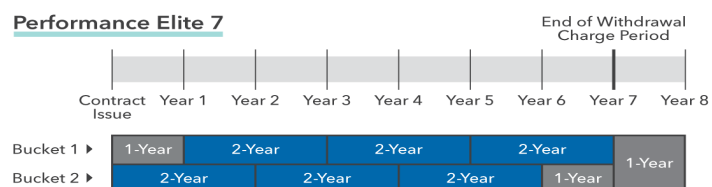
If you select a Strategy Preset option, your allocation percentage for each strategy will be determined based on the Diversified Target Blend shown above and any Supplemental Allocations you select. For example, if 80% is allocated to the *Conservative* Strategy Preset option, then  $20\% \times 80\% = 16\%$  of the total allocation would be to the 1-Year Point-to-Point AI Powered Global Opportunities Index (AIGO) strategy. The *Balanced* and *Growth* options split the amounts allocated to the Diversified Target Blend evenly between 1-Year and 2-Year strategies. For example, if 80% is allocated to the *Balanced* Strategy Preset option, then  $10\% \times 80\% = 8\%$  of the total allocation would be to the 1-Year Point-to-Point AI Powered Global Opportunities Index (AIGO) strategy and  $10\% \times 80\% = 8\%$  of the total allocation would be to the 2-Year Point-to-Point AI Powered Global Opportunities Index (AIGO) strategy.

### Rebalancing

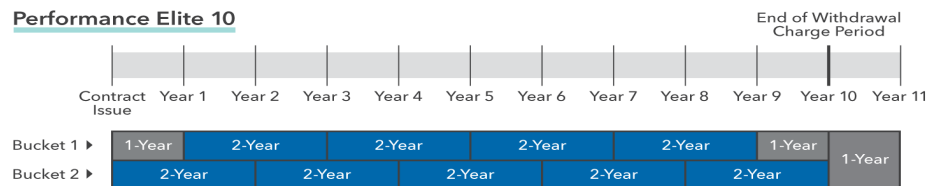
At each Contract Anniversary within the Withdrawal Charge period, including the Contract Anniversary that coincides with the end of the Withdrawal Charge period, the Accumulated Value of your Contract automatically rebalances to target the Diversified Target Blend allocation percentages along with any applicable Supplemental Allocations you selected. Automatic rebalancing occurs only through the end of the Withdrawal Charge period. On the Contract Anniversary that coincides with the end of the Withdrawal Charge period, all funds will either remain in or be transferred to (as applicable) the 1-Year strategies associated with the Strategy Preset option you chose. On subsequent Contract Anniversaries, you must make any allocation changes yourself. For the *Balanced* and *Growth* options (assuming no Supplemental Allocations are utilized), the Accumulated Value will be allocated to both 1-Year and 2-Year strategies in the first and last years of the Withdrawal Charge period. For the years in between the first and last years of the Withdrawal Charge period, 100% of the Accumulated Value will be allocated to 2-Year strategies. Please see Figure 1 below for a graphical representation of how strategy transfers occur over time under the *Balanced* and *Growth* options.

**Figure 1: *Balanced* and *Growth* Demonstration of Strategy Transfers<sup>4</sup>**

#### Performance Elite 7



#### Performance Elite 10



#### Performance Elite 15



### The following examples illustrate how rebalancing works:

**Example 1 - Conservative option with no Supplemental Allocations:** Assuming the premium is \$100,000 and the total Accumulated Value at the end of the first Contract Year is \$103,975, the Accumulated Value would be rebalanced as follows:

| Strategy                         | Target Allocation % | Beginning of Year 2 Rebalanced Allocation |
|----------------------------------|---------------------|-------------------------------------------|
| 1-Year Point-to-Point (AIGO)     | 20.0%               | \$20,795                                  |
| 1-Year Point-to-Point (AIPEX)    | 10.0%               | \$10,398                                  |
| 1-Year Point-to-Point (BNPIMAD5) | 20.0%               | \$20,795                                  |
| 1-Year Point-to-Point (BOFANFCC) | 15.0%               | \$15,596                                  |
| 1-Year Point-to-Point (SPXFCDUE) | 15.0%               | \$15,596                                  |
| 1-Year Point-to-Point (UBSIBAL)  | 20.0%               | \$20,795                                  |

<sup>4</sup> Transfers from 2-Year strategies to 1-Year strategies occur at the end of year 8 (Bucket 1) and the end of year 9 (Bucket 2) for Performance Elite 10 policies issued in CA.



*Example 2 – Balanced option with no Supplemental Allocations:* Assuming the premium is \$100,000, then \$50,000 of the initial allocation is to 1-Year strategies (Bucket 1) and \$50,000 is to 2-Year strategies (Bucket 2). Further assuming the Accumulated Value of Bucket 1 at the end of the first Contract Year is \$51,987.50, the Accumulated Value for Bucket 1 would be rebalanced as follows:

| Strategy                         | Initial Allocation %                                                                        | Initial Allocation \$ | End of Year 1 Value | Target Allocation %                                                                         | Rebalanced Allocation \$ |
|----------------------------------|---------------------------------------------------------------------------------------------|-----------------------|---------------------|---------------------------------------------------------------------------------------------|--------------------------|
| 1-Year Point-to-Point (AIGO)     | 10.0%                                                                                       | \$10,000              | \$10,450.00         | End of Year 1 Value in these strategies is rebalanced and transferred to 2-Year strategies. |                          |
| 1-Year Point-to-Point (AIPEX)    | 5.0%                                                                                        | \$5,000               | \$5,400.00          |                                                                                             |                          |
| 1-Year Point-to-Point (BNPIMAD5) | 10.0%                                                                                       | \$10,000              | \$10,750.00         |                                                                                             |                          |
| 1-Year Point-to-Point (BOFANFCC) | 7.5%                                                                                        | \$7,500               | \$7,500.00          |                                                                                             |                          |
| 1-Year Point-to-Point (SPXFCDUE) | 7.5%                                                                                        | \$7,500               | \$7,612.50          |                                                                                             |                          |
| 1-Year Point-to-Point (UBSIBAL)  | 10.0%                                                                                       | \$10,000              | \$10,275.00         |                                                                                             |                          |
| 2-Year Point-to-Point (AIGO)     | These 2-Year strategies are not utilized for Bucket 1 until the first Contract Anniversary. |                       |                     | 20.0%                                                                                       | \$10,397.50              |
| 2-Year Point-to-Point (AIPEX)    |                                                                                             |                       |                     | 10.0%                                                                                       | \$5,198.75               |
| 2-Year Point-to-Point (BNPIMAD5) |                                                                                             |                       |                     | 20.0%                                                                                       | \$10,397.50              |
| 2-Year Point-to-Point (BOFANFCC) |                                                                                             |                       |                     | 15.0%                                                                                       | \$7,798.13               |
| 2-Year Point-to-Point (SPXFCDUE) |                                                                                             |                       |                     | 15.0%                                                                                       | \$7,798.13               |
| 2-Year Point-to-Point (UBSIBAL)  |                                                                                             |                       |                     | 20.0%                                                                                       | \$10,397.50              |
| Total                            |                                                                                             | \$50,000              | \$51,987.50         | 100.0%                                                                                      | \$51,987.50              |

Combining the \$51,987.50 in Bucket 1 that was rebalanced on the first Contract Anniversary with the \$50,000 in Bucket 2 that was initially allocated to 2-Year strategies, the total Accumulated Value at the beginning of the second Contract Year is now \$101,987.50. The rebalancing illustrated in this example works the same for the *Growth* option, except the strategies would have a Strategy Charge.

### **ADDITIONAL STRATEGY PRESET FEATURE CONSIDERATIONS**

#### Switching to Manual Allocations

If you select a Strategy Preset option, you can switch to manually managed allocations at any Contract Anniversary; however, all subsequent reallocations will be manual. When you switch, any funds in the middle of a 2-Year strategy Index Term Period will remain in that strategy until its Index Term End Date. Transfers cannot be made into any Strategy Preset option at a future point.

#### Withdrawals

The default ordering of withdrawals for your Contract is to withdraw from the 1-Year Fixed strategy first until depleted, and then to withdraw proportionally across all other strategies. Withdrawals that do not follow the contractual default ordering of withdrawals may prevent you from achieving the target allocations on subsequent Contract Anniversaries.

#### Strategy Discontinuation

Keep in mind the Company may discontinue a strategy at any time during the life of your Contract. If a strategy is discontinued, the Company may elect to replace the discontinued strategy with a new strategy or redistribute the Accumulated Value allocated to the discontinued strategy among the remaining available strategies. In either case, the applicable automated rebalancing and strategy transfers will continue, but it is possible the target allocations may change.

#### Strategy Preset Feature Discontinuation

Athene reserves the right to discontinue the Strategy Preset feature at any time and at our sole discretion. If this occurs, allocations for the current Index Term Period will continue and will not be rebalanced or transferred on subsequent Contract Anniversaries unless a manual reallocation is made by you.

#### Interest Credits

Diversification of strategy allocations does not guarantee you will earn an interest credit in any given year.



### SELECT YOUR INITIAL ALLOCATIONS

Select **ONE** of the four allocation methods shown below (Strategy Preset: *Conservative/Balanced/Growth* or Manual Allocation). The sum of the percentages in the 'Allocation' column must total 100% and must be whole percentages.

| Check One                                             | Options                                                               | Allocation %        |
|-------------------------------------------------------|-----------------------------------------------------------------------|---------------------|
| Conservative <sup>5</sup><br><input type="checkbox"/> | Strategy Preset: <i>Conservative</i>                                  | %                   |
|                                                       | Supplemental Allocation: 1-Year Point-to-Point (SPX) (Without Charge) | %                   |
|                                                       | Supplemental Allocation: 1-Year Fixed                                 | %                   |
|                                                       | Total Allocation: 100%                                                |                     |
| Balanced <sup>6</sup><br><input type="checkbox"/>     | Strategy Preset: <i>Balanced</i>                                      | %                   |
|                                                       | Supplemental Allocation: 1-Year Point-to-Point (SPX) (Without Charge) | %                   |
|                                                       | Supplemental Allocation: 1-Year Fixed                                 | %                   |
|                                                       | Total Allocation: 100%                                                |                     |
| Growth <sup>7</sup><br><input type="checkbox"/>       | Strategy Preset: <i>Growth</i>                                        | %                   |
|                                                       | Supplemental Allocation: 1-Year Point-to-Point (SPX) (Without Charge) | %                   |
|                                                       | Supplemental Allocation: 1-Year Fixed                                 | %                   |
|                                                       | Total Allocation: 100%                                                |                     |
| Manual<br><input type="checkbox"/>                    | <b>Strategy</b>                                                       | <b>Allocation %</b> |
|                                                       | 2-Year Point-to-Point (AIGO) With Charge                              | %                   |
|                                                       | 2-Year Point-to-Point (AIGO)                                          | %                   |
|                                                       | 2-Year Point-to-Point (AIPEX) With Charge                             | %                   |
|                                                       | 2-Year Point-to-Point (AIPEX)                                         | %                   |
|                                                       | 2-Year Point-to-Point (BNPIMAD5) With Charge                          | %                   |
|                                                       | 2-Year Point-to-Point (BNPIMAD5)                                      | %                   |
|                                                       | 2-Year Point-to-Point (BOFANFCC) With Charge                          | %                   |
|                                                       | 2-Year Point-to-Point (BOFANFCC)                                      | %                   |
|                                                       | 2-Year Point-to-Point (SPXFCdue) With Charge                          | %                   |
|                                                       | 2-Year Point-to-Point (SPXFCdue)                                      | %                   |
|                                                       | 2-Year Point-to-Point (UBSIBAL) With Charge                           | %                   |
|                                                       | 2-Year Point-to-Point (UBSIBAL)                                       | %                   |
|                                                       | 1-Year Point-to-Point (AIGO) With Charge                              | %                   |
|                                                       | 1-Year Point-to-Point (AIGO)                                          | %                   |
|                                                       | 1-Year Point-to-Point (AIPEX) With Charge                             | %                   |
|                                                       | 1-Year Point-to-Point (AIPEX)                                         | %                   |
|                                                       | 1-Year Point-to-Point (BNPIMAD5) With Charge                          | %                   |
|                                                       | 1-Year Point-to-Point (BNPIMAD5)                                      | %                   |
|                                                       | 1-Year Point-to-Point (BOFANFCC) With Charge                          | %                   |
|                                                       | 1-Year Point-to-Point (BOFANFCC)                                      | %                   |
|                                                       | 1-Year Point-to-Point (SPXFCdue) With Charge                          | %                   |
|                                                       | 1-Year Point-to-Point (SPXFCdue)                                      | %                   |
|                                                       | 1-Year Point-to-Point (UBSIBAL) With Charge                           | %                   |
|                                                       | 1-Year Point-to-Point (UBSIBAL)                                       | %                   |
|                                                       | 1-Year Point-to-Point (SPX) With Charge                               | %                   |
|                                                       | 1-Year Point-to-Point (SPX)                                           | %                   |
|                                                       | 1-Year Fixed                                                          | %                   |
| Total Allocation: 100%                                |                                                                       |                     |

<sup>5</sup> The *Conservative* option has no Strategy Charges and only allocates to 1-Year strategies.

<sup>6</sup> The *Balanced* option has no Strategy Charges and additionally allocates to 2-Year strategies.





### **ACKNOWLEDGE AND SIGN**

By signing below, you confirm your allocation choices indicated on this form and confirm your receipt of the separate Index Strategy Disclosure Form. In addition, if you selected a Strategy Preset option, you acknowledge the following:

1. The Strategy Preset feature is only available when allocating your premium at the purchase of your Contract and you cannot transfer into it at a later date. You can only select one Strategy Preset option.
2. If you choose to discontinue a Strategy Preset option at any time, you will be responsible for manual reallocations at any subsequent Contract Anniversary, if applicable.
3. We will target the stated allocation percentages, but do not guarantee you will achieve them exactly.

Owner(s)/Applicant(s) Name (Please print)\_\_\_\_\_

Owner(s)/Applicant(s) Signature(s)\_\_\_\_\_ Date\_\_\_\_\_

Joint Owner(s)/Applicant(s) Name (Please print)\_\_\_\_\_

Joint Owner(s)/Applicant(s) Signature(s)\_\_\_\_\_ Date\_\_\_\_\_

Producer Signature\_\_\_\_\_ Date\_\_\_\_\_



ACORD® **1035 EXCHANGE / ROLLOVER / TRANSFER eFORM**

Name of Receiving Company

Athene Annuity and Life Company

Business Address

7700 Mills Civic Parkway  
West Des Moines, IA 50266-3652

Mailing Address

P.O. Box 1555  
Des Moines, IA 50306-1555

Overnight Address

7700 Mills Civic Parkway  
West Des Moines, IA 50266-3652

This form can be used to accomplish a **FULL** or a **PARTIAL Exchange** of policies pursuant to Internal Revenue Code (IRC) Section 1035. This form can also be used for **Transfers of Funds and Direct Rollovers**. Complete the requested information concerning the existing policy and contract, check the appropriate boxes, and date and sign this form. Refer to the application, and if applicable, prospectus and any state required forms for additional important disclosures and information. Check with both the receiving and surrendering company for form requirements specific to the transaction that is being initiated.

If you are considering a replacement you have the right to receive information regarding your existing policy or contract values including, if available, an in force illustration, policy summary, premium payment amounts or the product prospectus. If the information is requested your existing company will return the requested information to you within five business days. Contact your existing carrier for additional information.

**Complete one form for each surrendering company and contract. Please apply funds to:****New / Existing Contract Number:** \_\_\_\_\_ **Receiving Carrier DTCC #:** \_\_\_\_\_  
(for Money Settlement)

Without this contract number, the funds will be applied to a new contract.

The receiving company may not accept the exchange / rollover / transfer if the funds do not meet its minimum premium requirements.

**1. SURRENDERING COMPANY POLICY / ACCOUNT / CONTRACT INFORMATION**

|                                                                                                                                |       |                                                                |                                                         |                                   |            |
|--------------------------------------------------------------------------------------------------------------------------------|-------|----------------------------------------------------------------|---------------------------------------------------------|-----------------------------------|------------|
| Surrendering Company Name (Complete one form for each surrendering company)                                                    |       |                                                                | Surrendering Company Account / Policy / Contract Number |                                   |            |
| Street Address Line 1                                                                                                          |       |                                                                | Address Line 2                                          |                                   |            |
| City                                                                                                                           | State | Zip                                                            | Phone Number                                            | Ext                               | Fax Number |
| Surrendering Plan Type (Non-Qualified, IRA, Roth IRA, etc.)                                                                    |       | Surrendering Product Type (Life, Annuity, CD, MF, Other, etc.) |                                                         | Estimated Amount of Transfer      |            |
|                                                                                                                                |       |                                                                |                                                         | \$                                |            |
| Owner (First, Middle, Last) / Entity Name                                                                                      |       |                                                                |                                                         | Social Security Number / Tax ID # |            |
| Joint Owner Name (First, Middle, Last) - Please confirm the availability of these options with the Receiving Company           |       |                                                                |                                                         | Social Security Number            |            |
| Insured / Annuitant Name (First, Middle, Last) - if other than owner (applies to Life & Annuity products only)                 |       |                                                                |                                                         | Social Security Number            |            |
| Joint Insured / Annuitant Name (First, Middle, Last) - Please confirm the availability of these options with the Receiving Co. |       |                                                                |                                                         | Social Security Number            |            |
| Contingent Annuitant Name (First, Middle, Last) - Please confirm the availability of these options with the Receiving Co.      |       |                                                                |                                                         | Social Security Number            |            |

**2. TRANSFER / ROLLOVER / 1035 EXCHANGE SURRENDERING INSTRUCTIONS**☐ **Full**    ☐ **Partial**    \$ \_\_\_\_\_ or \_\_\_\_\_ %☐ **Penalty Free Amount**

(This amount is subject to change based on the product provisions. Please check with the surrendering company to verify the amount)

By executing this form, I authorize the full or partial liquidation of my existing contract or account in accordance with the sections completed above. I hereby instruct the parties to process that liquidation:

☐ **As soon as possible after receipt of all necessary forms**    ☐ **On a specific date:** \_\_\_\_\_

I / We also understand it is my / our responsibility to confirm with the surrendering company their processing guidelines to selecting a specific transfer date.





### 3. DISCLOSURES / ACKNOWLEDGMENTS

- I. I fully assign and transfer all claims, options, privileges, rights, title and interest to either all of the life insurance policy, all of the annuity contract or part of the annuity contract value identified in the Contract Information section on page 1 to the receiving company. The sole purpose of this assignment is to effect a tax-free exchange under Section 1035(a) of the Internal Revenue Code. All of the powers, elections, appointments, options and rights I have as owner of the contract, including the right to surrender, are now exercisable by the receiving company. Simultaneous with a full assignment, I also revoke all existing beneficiary designations under the Assigned Policy. Other than the above mentioned owner, no person, firm, or corporation other than myself and the insurer that issued the above numbered policy, has an interest in said policy. No proceedings in insolvency or bankruptcy have been instituted by or against me. I understand that the receiving company intends to surrender the contract for the cash value; or if this is a partial exchange, the portion assigned, subject to its terms and conditions, and to use the proceeds as the purchase payment for the new contract to be issued by the receiving company. I authorize the surrendering company to send the proceeds directly to the receiving company and understand that fees and surrender charges may apply. This exchange is subject to acceptance by the receiving company. Neither the receiving company nor the surrendering company is liable or responsible for changes in market value that may occur after the surrendering company has processed the transaction and before the proceeds are received by the receiving company in good order and allocated to the new contract. Prior to the date of receipt of the proceeds by the receiving company, no value will accrue or be earned on the receiving company contract.
- II. If this is a rollover or transfer, I authorize the surrendering company to send the proceeds directly to the receiving company and understand that fees and surrender charges may apply. This rollover/transfer is subject to acceptance by the receiving company. Neither the receiving company nor the surrendering company is liable or responsible for changes in market value that may occur after the surrendering company has processed the transaction and before the proceeds are received by the receiving company in good order and allocated to the new contract. Prior to the date of receipt of the proceeds by the receiving company, no value will accrue or be earned on the receiving company contract. For a direct rollover from a retirement plan, I acknowledge the amount represents all or part of an eligible rollover distribution from the retirement plan as defined under applicable tax law.
- III. If this is a partial exchange, I understand that it is subject to Revenue Ruling 2003-76, which dictates how much of the original contract's cost basis must be allocated to the new contract. The cost basis should be allocated ratably between the two contracts based on the percentage of the value retained in the original contract and the percentage of the value transferred to the new contract. For example, if the contract value is \$100,000 and basis is \$50,000, and I assign 30% for a partial exchange, then \$15,000 (30% of \$50,000) of the basis would be applied to the new contract. I understand that the IRS has raised concerns about annuity contract owners using partial exchanges to avoid income tax, and I certify that I am not entering into this transaction for the purpose of reducing or avoiding income tax or the 10% penalty tax for early withdrawals. I expressly represent that the sole purpose is to effect a partial 1035 exchange of an annuity contract. However, I acknowledge that Revenue Procedure 2011-38 states that withdrawals from annuitization, taxable owner or annuitant changes, or surrenders, other than an amount received as an annuity for a period of 10 years or more or during one or more lives, of either the original contract or the new contract during the 180 day period following the partial exchange, may affect the tax free status of the partial exchange.
- Note: Other exceptions may apply and a subsequent direct transfer of all or a portion of either contract involved in the exchange could have tax and tax reporting consequences. Please consult your tax advisor. Please confirm with the carrier if they will support partial 1035 exchanges.
- I acknowledge that the receiving company has made no representations concerning any tax treatment of this transaction. I understand that the receiving company has neither responsibility nor liability for the validity of this transaction or for my treatment under Section 1035(a) of the Internal Revenue Code or otherwise. Therefore, I agree to release and hold harmless the receiving company and its agents from any and all liability arising from, relating to, or in connection with, the taxation of a partial exchange of the above listed contract. I authorize the receiving company and the surrendering institution to share information necessary to maintain accurate records of the annuity cost basis and to ensure proper withholding and tax reporting. I have been directed to consult my tax or legal advisor before proceeding.
- IV. I authorize the receiving company to rely upon the cost basis information provided by the surrendering company, but agree that the receiving company will assume no responsibility for determining or verifying cost basis. If cost basis is not provided, I acknowledge that more restrictive or less beneficial tax rules may apply to the amounts transferred. I acknowledge that the receiving company provides this form and participates in this transaction as an accommodation to me. The receiving company does not give tax or legal advice on the tax consequences for replacing one contract for another, and assumes no responsibility or liability for the validity of this assignment or for the tax treatment of this exchange under IRC Section 1035(a) or other laws or regulations.
- V. I agree that if the receiving company, in its sole discretion, determines that it is unlikely to receive timely payment of the full contract cash surrender values, the receiving company may reassign ownership of the policy/contract back to me.
- VI. RETURN OF LIFE INSURANCE POLICY OR ANNUITY CONTRACT - Does not apply to partial 1035 exchanges on annuity contracts. Unless the surrendering company's policy or contract is attached, I affirm that the policy or contract has been destroyed or lost and that reasonable effort has been made to locate it. To the best of my knowledge no one else has any right, title or interest in the contract, nor has it been assigned, pledged or encumbered, unless this is a life insurance policy with a loan to carry forward.
- VII. MAXIMUM ISSUE AGE DISCLOSURE - An annuity contract may not be issued should the funding requirements be received after reaching maximum issue age for the annuity contract applied for. If the funds are received after the maximum issue age, the contract may be rejected and the funds returned to their original source. The surrendering company may or may not take the funds back, which could result in a taxable event.
- VIII. NON-QUALIFIED TRANSFER OF FUNDS (NON 1035 EXCHANGE) - The receiving company will apply all such funds received to an annuity contract issued to me. I understand that the receiving company assumes no responsibility for tax treatment of this matter and I shall be responsible for payment of all federal, state and local taxes incurred with respect to the liquidation of such account. I acknowledge that the earnings credited under the annuity contract will begin to accrue when the receiving company receives these proceeds and all other necessary paperwork in good order. For index annuities, fixed account interest under the annuity contract will begin to accrue on the next Issue Day.
- IX. TRANSFER / EXCHANGE OF FUNDS INTO A TSA/403(B) - The TSA/403(b) owner / participant's employer or employer's third-party administrator must authorize and sign this transfer request in Section 5.
- Authorization for a TSA/403(b) transfer / exchange to a TSA/403(b): This request is for the direct transfer / exchange of non-ERISA funds from the TSA/403(b) (annuity contract) or 403(b)(7) (custodial account) identified in Section 1 of this form to a TSA/403(b) (annuity contract) established on my behalf by the receiving company. I hereby agree to surrender my interest as indicated above and authorize the receiving company to take whatever action necessary to effect this transfer / exchange. I acknowledge that the transferred / exchanged funds shall be subject to the more stringent restrictions on distributions found in either the predecessor annuity contract or the receiving annuity contract. I intend this transaction to be a 403(b) transfer / exchange of funds pursuant to IRC section 403(b) and the final regulations. The transfer / exchange is to be executed from financial institution to financial institution in such a manner that it will not place me in actual or constructive receipt of all or any part of the transferred / exchanged funds. Because this transaction constitutes a direct rollover / transfer / exchange of funds and not a distribution, withholding does not apply. (Provide the receiving company with any records or documents they may request with respect to this transfer / exchange.)



### 3. DISCLOSURES/ACKNOWLEDGMENTS CONTINUED

- X. The IRS has provided limited guidance on the tax consequences of transferring a life insurance policy with values less than the investment in the contract to a new or existing annuity contract. If the owner surrenders the newly acquired annuity contract, it's not clear whether the annuity losses are fully deductible against ordinary income or deductible as a miscellaneous deduction subject to a limitation of 2% of adjusted gross income (AGI). If the IRS views the two transactions as a single integrated transaction, they could consider it a step transaction and successfully disallow the losses as a tax deduction.
- XI. REQUIRED MINIMUM DISTRIBUTIONS - Important note to owner: The existing financial institution has the most accurate information to ensure that you receive the correct RMD from this contract. If you do not receive the full amount of your RMD, you may be subject to an IRS penalty. If necessary, instruct your existing financial institution before effecting this transfer to either (1) pay your RMD to you now or (2) retain that amount for distribution to you later.

### 4. TAXPAYER IDENTIFICATION NUMBER CERTIFICATION

Under penalties of perjury, I certify that:

1. The number on this form is my correct taxpayer identification number (or I am waiting for a number to be issued to me); and
2. I am not subject to backup withholding because: (a) I am exempt from backup withholding, or (b) I have not been notified by the Internal Revenue Service (IRS) that I am subject to backup withholding as a result of failure to report all interest or dividends, or (c) the IRS has notified me that I am no longer subject to backup withholding; and
3. I am a U.S. person (including a U.S. resident alien).

☐ Check this box if you have been notified by the IRS that you are currently subject to backup withholding because you have failed to report all interest and dividends on your tax return.

4. I am exempt from Foreign Account Tax Compliance Act (FATCA) reporting.

### 5. SIGNATURES

This transfer request also authorizes the receiving and surrendering company to request information on the status of this transfer or exchange by phone or in writing. By signing below, I represent that the responses herein are, to the best of my knowledge, accurate and I have read the DISCLOSURES / ACKNOWLEDGMENTS section on page 2 the ACORD 1035 Exchange / Rollover / Transfer Form.

The Internal Revenue Service does not require your consent to any provisions of this document other than the certifications required to avoid backup withholding.

For your protection California law requires the following to appear on this form:

Any person who knowingly presents false or fraudulent information to obtain or amend insurance coverage or to make a claim for the payment of a loss is guilty of a crime and may be subject to fines and confinement in state prison.

Signature Guarantee (if applicable)

Signature of Owner / Plan Administrator / Trustee / Custodian

Date (mm/dd/yyyy)

Signature of Joint Owner / Co-Trustee (if applicable)

Date (mm/dd/yyyy)

Signature of Insured / Annuitant (if applicable)

Date (mm/dd/yyyy)

Signature of Irrevocable Beneficiary (if applicable)

Date (mm/dd/yyyy)

Signature of Spouse (Required in Community Property States: AZ, CA, ID, LA, NV, NM, TX, WA and WI only) (if applicable)

Date (mm/dd/yyyy)

### FOR TSA/403(b) TO TSA/403(b) TRANSFERS/EXCHANGES ONLY-EMPLOYER/THIRD PARTY ADMINISTRATOR SIGNATURE

By signing below, I am acknowledging that I have reviewed this direct transfer / rollover / exchange request and that it is authorized and approved under the employer's 403(b) plan under IRC section 403(b) and the final regulations.

- a) I am authorizing this transfer / rollover request.
- b) I am confirming that there is an information sharing agreement in place with the receiving company under the IRC section 403(b) regulations.
- c) All information provided on this form is accurate.

Print Name of Employer or Third Party Administrator

Title of Employer or Third Party Administrator

Signature of Employer or Third Party Administrator

Date (mm/dd/yyyy)



(For the receiving company's use only)

**6. SIGNATURES**

**6A. ACCEPTANCE OF 1035 EXCHANGE / TRUSTEE TRANSFER / DIRECT ROLLOVER**

By signature of an authorized officer below, the receiving company accepts assignment of all (or a portion of the assets if this is a partial exchange) to the above contract for purposes of complying with the client's intention of effecting a nontaxable exchange under IRC Section 1035. Please issue payment payable to the receiving company, the owner of the contract, for the full cash surrender value of the contract or a portion if it is a partial surrender.

For Trustee Transfers / Direct Rollovers from Tax-Qualified Accounts / Contracts:

The Receiving Company will deposit funds received into the following Plan Type and Product Type:

|                                                          |                                                             |
|----------------------------------------------------------|-------------------------------------------------------------|
| Receiving Plan Type (Non-Qualified, IRA, Roth IRA, etc.) | Receiving Product Type (Life, Annuity, CD, MF, Other, etc.) |
|                                                          |                                                             |

**6B. eCONSENT AND ACKNOWLEDGMENT (Applies to eSignature Transactions Only)**

To the extent the receiving company has obtained electronic signatures to effectuate the transaction(s) set forth in this form, the receiving company, by the below signature of its authorized officer, hereby represents and warrants to the surrendering company that:

- This form has been completed using an electronic system that has an integrated e-signature capability;
- All consumer consents have been obtained under, and this form was signed using an e-signature process that complies with, all applicable federal and state e-signature requirements, including, but not limited to, the federal E-Sign Act, and the applicable states' versions of the Uniform Electronic Transactions Act;
- It shall indemnify, defend, and hold harmless the surrendering company from and against all losses, costs, liabilities, claims, threatened claims, demands, suits, obligations, expenses, judgments, and damages, including, but not limited to, reasonable attorneys' fees and witness' fees, arising from or related to: (i) the receiving company's breach of the warranties set forth in (a) and/or (b) above; (ii) a liability imposed by any municipal, state or federal governmental body relating to the receiving company's violation of an applicable e-signature law or regulation; and (iii) the receiving company's gross negligence, willful misconduct or illegal acts, including, but not limited to, claims that the e-signatures obtained on this form by the receiving company are invalid or were improperly obtained; provided, however, that (iv) the surrendering company shall provide the receiving company of prompt written notice of any claim that the surrendering company believes falls within this scope of this paragraph, and (v) the surrendering company shall not settle any claim that adversely affects any rights of the receiving company without the receiving company's prior written consent; and
- It shall promptly provide to the surrendering company and/or its designee(s) any and all information in the receiving company's possession (or within the receiving company's reasonable control) as may be necessary to evidence the validity of the electronic signatures that were obtained to effectuate the transaction(s) set forth in this form.

|                                                                                         |                                                                             |
|-----------------------------------------------------------------------------------------|-----------------------------------------------------------------------------|
| Print Name of Authorized Officer<br>Susan Smith                                         | Title of Authorized Officer<br>Senior Vice President - Insurance Operations |
| Signature of Authorized Officer<br>(if applicable - may not be required if LOA is used) | Date (mm/dd/yyyy)                                                           |



**Please complete a form for each life insurance policy or annuity contract being replaced.**

**Do not leave any blanks. Any missing, incomplete or incorrect information will require the owner to initial and date corrections or verbally acknowledge prior to Athene completing its review of the proposed replacement.**

|                                                                                                                                                                                                                                                                                                                  |                                                                                                                                                                                                                                                                                       |                                                                                          |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------|
| <b>1. Owner Name</b>                                                                                                                                                                                                                                                                                             |                                                                                                                                                                                                                                                                                       |                                                                                          |
| <b>PRODUCT SPECS AND FEATURES</b>                                                                                                                                                                                                                                                                                | <b>REPLACED CONTRACT</b>                                                                                                                                                                                                                                                              | <b>PROPOSED CONTRACT</b><br>Athene Performance Elite® 10<br>Athene Performance Elite® 15 |
| <b>2. Company Name</b>                                                                                                                                                                                                                                                                                           |                                                                                                                                                                                                                                                                                       | Athene Annuity and Life Company                                                          |
| <b>3. Type of Contract</b> <i>Check one</i><br><i>If Fixed Indexed Annuity is selected, form 22216 is required</i><br><i>If Life Insurance is selected, question 22 is required</i>                                                                                                                              | <input type="checkbox"/> Fixed Indexed Annuity<br>(If selected, form 22216 is required)<br><input type="checkbox"/> Life Insurance<br><input type="checkbox"/> Fixed Annuity<br><input type="checkbox"/> Registered Index-Linked Annuity<br><input type="checkbox"/> Variable Annuity | Fixed Indexed Annuity                                                                    |
| <b>4. Replacement Type</b><br><i>Please check all that apply</i>                                                                                                                                                                                                                                                 | <input type="checkbox"/> Full Replacement<br><input type="checkbox"/> Partial Replacement<br><input type="checkbox"/> Penalty Free Replacement                                                                                                                                        |                                                                                          |
| <b>5. Contract Number</b>                                                                                                                                                                                                                                                                                        |                                                                                                                                                                                                                                                                                       |                                                                                          |
| <b>6. Issue Date</b><br>MM/DD/YYYY                                                                                                                                                                                                                                                                               |                                                                                                                                                                                                                                                                                       |                                                                                          |
| <b>7. Initial Premium</b>                                                                                                                                                                                                                                                                                        | \$                                                                                                                                                                                                                                                                                    | \$                                                                                       |
| <b>8. Accumulated Value</b>                                                                                                                                                                                                                                                                                      | \$                                                                                                                                                                                                                                                                                    |                                                                                          |
| <b>9. Surrender Value</b><br><i>Including +/- Market Value Adjustment, Premium Bonus Recapture and/or any other costs or fees associated with the replacement. <b>If the Surrender Value is greater than the Accumulated Value, please provide a copy of the most recent statement showing these values.</b></i> | \$                                                                                                                                                                                                                                                                                    |                                                                                          |
| <b>10. Number of years remaining in Surrender Term</b>                                                                                                                                                                                                                                                           |                                                                                                                                                                                                                                                                                       | Athene Performance Elite® 10 - 10 years<br>Athene Performance Elite® 15 - 15 years       |
| <b>11. Free Withdrawal Percentage</b>                                                                                                                                                                                                                                                                            | %                                                                                                                                                                                                                                                                                     | 0% Year 1;<br>5% After Year 1                                                            |
| <b>12. Lump Sum Death Benefit Value</b>                                                                                                                                                                                                                                                                          | \$                                                                                                                                                                                                                                                                                    |                                                                                          |
| <b>13. Annuitized Death Benefit Value</b><br><i>Need both value and years. If not applicable, please mark N/A</i>                                                                                                                                                                                                | \$                      Years                                                                                                                                                                                                                                                         | <input type="checkbox"/> N/A                                                             |
| <b>14. Lump Sum Death Benefit Rider Value</b><br><i>If not applicable, please mark N/A</i>                                                                                                                                                                                                                       | \$ <input type="checkbox"/> N/A                                                                                                                                                                                                                                                       |                                                                                          |

| PRODUCT SPECS AND FEATURES                                                                                                                                                                                                                                                                                                                           | REPLACED CONTRACT                                                                                              | PROPOSED CONTRACT                                            |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------|
|                                                                                                                                                                                                                                                                                                                                                      |                                                                                                                | Athene Performance Elite® 10<br>Athene Performance Elite® 15 |
| <b>15. Annuitized Death Benefit Rider Value</b><br><i>Need both value and years. If not applicable, please mark N/A</i>                                                                                                                                                                                                                              | \$                      Years <input type="checkbox"/> N/A                                                     |                                                              |
| <b>16. Is the producer who solicited the new Athene contract the same producer who solicited the contract or policy being replaced?</b>                                                                                                                                                                                                              | <input type="checkbox"/> Yes <input type="checkbox"/> No                                                       |                                                              |
| <b>17. Will any portion of an income rider on the annuity being replaced be forfeited as part of the replacement?</b>                                                                                                                                                                                                                                | <input type="checkbox"/> Yes <input type="checkbox"/> No<br><i>If yes, please complete questions 18 and 19</i> |                                                              |
| <b>18. Income Rider Value</b>                                                                                                                                                                                                                                                                                                                        | \$                                                                                                             |                                                              |
| <b>19. Please describe, in detail, what has changed since your current annuity with an income rider was purchased such that the income provided by it is no longer needed.</b>                                                                                                                                                                       |                                                                                                                |                                                              |
| <b>20. Current Fixed Rate</b><br><i>If replacing a variable annuity or registered index-linked annuity that does not have a fixed rate, select N/A.</i><br><br><i>If replacing a fixed indexed annuity that does not have a fixed rate, select N/A and provide the most recent statement or renewal letter showing no fixed option is available.</i> | <input type="checkbox"/> N/A                      %                                                            |                                                              |
| <b>21. Total annual fees/charges</b><br><i>If the contract being replaced does not have any fees or charges, select N/A</i>                                                                                                                                                                                                                          | <input type="checkbox"/> N/A                      %                                                            |                                                              |



|                                   |                          |                                                                                          |
|-----------------------------------|--------------------------|------------------------------------------------------------------------------------------|
| <b>PRODUCT SPECS AND FEATURES</b> | <b>REPLACED CONTRACT</b> | <b>PROPOSED CONTRACT</b><br>Athene Performance Elite® 10<br>Athene Performance Elite® 15 |
|-----------------------------------|--------------------------|------------------------------------------------------------------------------------------|

**22. COMPLETE THIS SECTION IF REPLACING A LIFE INSURANCE POLICY**

|                                                                                                                                                                                         |  |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|
| <p><b>Please describe, in detail, what has changed since your life insurance policy was purchased so that you no longer need or want the death benefit provided by such policy.</b></p> |  |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|

**23.** Have you exchanged any annuities within the preceding 60 months? ..... ☐ Yes ☐ No

If Yes, please explain

---

---

# Owner Acknowledgments and Attestation

I understand and acknowledge that with this replacement of my existing contract:

- I may incur surrender charges and/or fees and I may not be able to overcome any surrender charge incurred.
- I have carefully reviewed my existing contract to determine if other options are available to me that would provide the potential for improved performance and/or meet my current insurance needs and financial objectives at a lower cost and/or without incurring surrender charges. I understand that the new annuity contract may credit earnings differently than my existing contract or policy and therefore may require higher earnings to match the same level of performance offered by my existing contract or policy.
- I may not be able to reinstate my existing contract or policy once it is replaced.
- The annuity I am applying for is a long-term contract that will have a withdrawal charge on any withdrawals over the free withdrawal amount during the Withdrawal Charge Period as provided in the contract.
- I will lose all contractual benefits provided by my existing contract or policy, including but not limited to:
  - o Any death benefit disclosed above.
  - o Any income rider disclosed above.
- **I have or will consult my tax advisor or attorney for any tax or legal advice.**

**I further acknowledge and agree that I have reviewed and compared the contract provisions of my existing contract or policy to the annuity contract I am applying for, understand the benefits and costs of this replacement, including but not limited to any surrender charges, with respect to the replacement, loss of existing contractual benefits, tax consequences, product features and enhancements, fees and expenses. After due consideration, I believe this replacement is in my best interest and appropriate for me according to my current insurance needs and financial objectives.**

|                       |                   |
|-----------------------|-------------------|
| Owner Signature       | Date (MM/DD/YYYY) |
| Joint Owner Signature | Date (MM/DD/YYYY) |
| Producer Signature    | Date (MM/DD/YYYY) |



**Athene Annuity and Life Company**

Mailing Address: PO Box 1555, Des Moines, IA 50306-1555

Overnight Address: 7700 Mills Civic Parkway, West Des Moines, IA 50266-3862

Customer Contact Center - Tel: 888-266-8489 Fax: 800-531-0038



Athene.com

**NOTICE REGARDING REPLACEMENT****REPLACING YOUR LIFE INSURANCE POLICY OR ANNUITY?**

Are you thinking about buying a new life insurance policy or annuity and discontinuing or changing an existing one? If you are, your decision could be a good one – or a mistake. You will not know for sure unless you make a careful comparison of your existing benefits and the proposed benefits.

Make sure you understand the facts. You should ask the company or agent that sold you your existing policy to give you information about it.

Hear both sides before you decide. This way you can be sure you are making a decision that is in your best interest.

We are required by law to notify your existing company that you may be replacing their policy.

|                      |                            |                 |
|----------------------|----------------------------|-----------------|
| -----<br>(applicant) | -----<br>(joint applicant) | -----<br>(date) |
| -----<br>(agent)     | -----<br>(date)            |                 |

NOTICE: In the case of a replacement, you have the right to return the policy or contract within 30 days of its delivery and receive a full refund of all premiums or considerations paid, including any policy fee or charges.

The following policy(ies) may be replaced as a result of this transaction:

| Insurer as it appears<br>on the policy | Insured as it appears<br>on the policy | Policy Number |
|----------------------------------------|----------------------------------------|---------------|
| -----                                  | -----                                  | -----         |
| -----                                  | -----                                  | -----         |
| -----                                  | -----                                  | -----         |

RETURN TO ATHENE, PROVIDE COPY TO APPLICANT, KEEP COPY FOR YOUR RECORDS





**Mail or fax completed form to:**
 P.O. Box 1555, Des Moines, IA 50306-1555 Fax: 866-709-3922  
 Customer Contact Center - Tel: 888-266-8489
**Athene Annuity and Life Company**

7700 Mills Civic Parkway, West Des Moines, IA 50266-3862

**COMPLETE THIS FORM IF THE PRODUCT COMPARISON FORM  
 QUESTION 3 IS MARKED FIXED INDEXED ANNUITY**

List all available Index Strategy Options and rates as well as all Fixed Strategy Options and rates for the replaced contract. For each strategy listed, please check all options that apply. Please list replaced company name and contract number. If there is no Fixed Strategy Option available on the contract being replaced, please provide a copy of the most recent statement or renewal letter that shows there is no Fixed Strategy Option available. Any corrections to this form are required to be acknowledged by the primary writing producer and the owner(s).

|                                                                                                                                                        |                                                       |  |
|--------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------|--|
| <b>Owner Name:</b>                                                                                                                                     |                                                       |  |
| <b>Replaced Contract</b>                                                                                                                               |                                                       |  |
| <b>Strategy Type</b><br>Ex. 1-Year S&P 500 Point-to-Point<br><br><b>Replaced Company Name</b><br>_____<br><br><b>Replaced Contract Number</b><br>_____ | <b>Current Rates</b><br>Cap/Participation Rate/Spread |  |
|                                                                                                                                                        | Cap_____%    Par Rate_____%    Spread_____%           |  |
|                                                                                                                                                        | Cap_____%    Par Rate_____%    Spread_____%           |  |
|                                                                                                                                                        | Cap_____%    Par Rate_____%    Spread_____%           |  |
|                                                                                                                                                        | Cap_____%    Par Rate_____%    Spread_____%           |  |
|                                                                                                                                                        | Cap_____%    Par Rate_____%    Spread_____%           |  |
|                                                                                                                                                        | Cap_____%    Par Rate_____%    Spread_____%           |  |
|                                                                                                                                                        | Cap_____%    Par Rate_____%    Spread_____%           |  |
|                                                                                                                                                        | Cap_____%    Par Rate_____%    Spread_____%           |  |
|                                                                                                                                                        | Cap_____%    Par Rate_____%    Spread_____%           |  |
|                                                                                                                                                        | Cap_____%    Par Rate_____%    Spread_____%           |  |
|                                                                                                                                                        | Cap_____%    Par Rate_____%    Spread_____%           |  |
|                                                                                                                                                        | Cap_____%    Par Rate_____%    Spread_____%           |  |



**How will the Athene annuity provide better potential growth?** *(answers of n/a, none or leaving the question blank are not acceptable and will cause delays in processing)*

|                       |                   |
|-----------------------|-------------------|
| Owner Signature       | Date (MM/DD/YYYY) |
| Joint Owner Signature | Date (MM/DD/YYYY) |
| Producer Signature    | Date (MM/DD/YYYY) |

# Trust Verification



Athene.com

## Submit completed form to:

P.O. Box 1555, Des Moines, IA 50306-1555 Fax: 866-709-3922

Email: documents@athene.com

## Contact us:

Annuity Customer Contact Center: 888-266-8489

Email: askathene@athene.com

## Athene Annuity and Life Company

7700 Mills Civic Parkway, West Des Moines, IA 50266-3862

## Athene Life Insurance Company of New York

## Athene Annuity & Life Assurance Company of New York

Home Office, Pearl River, NY 10965

### INSTRUCTIONS - ALL SECTIONS MUST BE COMPLETED

Use this form to provide information about your Trust, including information about Trustee(s) and amended Trust dates.

#### A. Trust Information

Please list all existing contracts with Athene that have this Trust as owner or beneficiary.

1. Contract Number(s):

2. Full Name of Trust:

3. Contract Owner (only required if Contract Owner is not the Trust identified in #2):

4. Trust Dates:

|                                         |  |  |  |
|-----------------------------------------|--|--|--|
| Original Trust Date:                    |  |  |  |
| Amended Trust Dates:<br>(if applicable) |  |  |  |
|                                         |  |  |  |

5. State that Governs the Trust:

6. Type of Trust: (please select one)

☐ Revocable

☐ Irrevocable

☐ Charitable Remainder: I certify that the trust is tax-exempt as a charitable remainder annuity trust or a charitable remainder unitrust under Section 664 of the Internal Revenue Code.

7. Trust Tax Identification Number (TIN): (please select one)

☐ The Trust Tax Identification Number (TIN) is:

☐ The Trust does not have a separate Tax Identification Number (TIN) and the personal TIN of the First Settlor/Grantor listed below is used.

| 8. | Name of Settlor/Grantor of Trust | Social Security Number | Date of Birth | Living                   | Deceased                 |
|----|----------------------------------|------------------------|---------------|--------------------------|--------------------------|
|    |                                  |                        | / /           | <input type="checkbox"/> | <input type="checkbox"/> |
|    |                                  |                        | / /           | <input type="checkbox"/> | <input type="checkbox"/> |

9. Names of ALL current Trustees (All current Trustees must sign on page 3):

| Name of Trustee(s) |
|--------------------|
|                    |
|                    |
|                    |



# Trust Verification

## A. Trust Information (continued)

10. Names of ALL Successor Trustees (if applicable):

|  |  |
|--|--|
|  |  |
|  |  |

11. Names of Notary and/or other Witnesses of Trust:

|  |  |
|--|--|
|  |  |
|  |  |

12. Signature required by the Trust Agreement to authenticate forms and/or request on behalf of the Trust in connection with insurance products (please check one):

☐ ANY of the current Trustees, acting alone ☐ ALL of the Trustees, acting together

☐ Other (explain)

|  |
|--|
|  |
|--|

13. Neither the insurance agent nor any person affiliated with the insurance agent is a beneficiary of the Trust.

☐ Agree ☐ Disagree, (please attach an explanation of why the individual or individuals are named as a beneficiary of the Trust)

Note: Under the laws of most states, an agent is restricted in, or prohibited from, having a beneficial interest in a contract/policy sold by that agent, unless that agent is a family member, or has a recognized insurable interest.

## B. Certification of Beneficial Owner(s)

A Beneficial Owner is an individual who will receive 25% or more of the Trust proceeds. The Beneficial Owner, if any, may or may not be the Trustee or the Grantor of the Trust.

To help the United States government fight financial crime, federal regulation requires certain financial institutions to obtain, verify, and record information about the beneficial owners. Athene may require a valid copy of your identification (i.e. non-expired governmental identification: driver's license, passport, etc) to purchase a contract.

**A response below is required:** Either check the box or enter information for at least one beneficial owner.

☐ Check here if no individual will receive 25% or more of the Trust proceeds. If checked, go to Section C

| Name | Date of Birth | Social Security Number | For Foreign Person(s):<br>Passport Number and<br>Country of Issuance or<br>other similar identification<br>number <sup>1</sup> |
|------|---------------|------------------------|--------------------------------------------------------------------------------------------------------------------------------|
|      |               |                        |                                                                                                                                |
|      |               |                        |                                                                                                                                |
|      |               |                        |                                                                                                                                |
|      |               |                        |                                                                                                                                |

<sup>1</sup> In lieu of a passport number, foreign persons may also provide an alien identification card number, or number and country of issuance of any other government-issued document evidencing nationality or residence and bearing a photograph or similar safeguard.

## C. Certifications by Trustee(s)

The Trustee(s) states and agrees that:

- The Trust, if named owner, is authorized under the terms of the Trust to purchase and/or hold insurance on the life of any insured/annuitant. If named beneficiary, the Trust is authorized to receive proceeds as provided under the terms of the insurance policy and/or annuity contract. I/We have also determined the insurance product is appropriate for the Trust's purpose and the terms of the insurance product conforms to the income distribution requirements, if any, of the Trust.
- I/We certify that the Company may rely solely on this Verification and the information provided for policy/contract administration purposes and the Company has no obligation to investigate the terms of the Trust or the authority of the Trustee(s). The Company expressly denies responsibility regarding the use and applications of any payments made to the Trust by the Trustee(s) and the Trustee(s) will hold the Company harmless from any action the Company takes at the direction of the Trustee(s).
- The Trustee(s) understands that under Section 72(u) of the Internal Revenue Code, an annuity owned by a non-natural owner, including a trust, is generally not entitled to tax-deferred status. A non-natural owner of an annuity is entitled to tax-deferred status only if certain exceptions under Section 72(u) apply. Accordingly, the income on the contract accumulated each year may be treated as ordinary income to the owner each year, whether or not any distributions are made from the annuity. The Trustee(s) acknowledges that the Company's tax reporting obligation is limited to issuing IRS Form 1099-R to reflect distributions that actually occur during a particular tax year. The Trustee(s) further acknowledges that the income on the contract may be currently taxable to the owner whether or not the Company issues a 1099-R to the owner in a particular year, and that the amount shown on a 1099-R for a given year, if any, may not reflect the actual amount reportable by the owner as taxable income for that year. The Company is not required to calculate the income on the contract in any particular year. The Trustee(s) acknowledges that the Trustee(s) is responsible for determining the amount of income on the contract that accumulates each year, and for complying with all tax reporting requirements.
- The Trustee(s) acknowledges that this document is intended for information purposes only, does not constitute tax advice, and does not modify the terms and conditions of the contract. All Trustees should consult with a qualified tax advisor prior to entering into the contract.
- The Trustee(s) declares that each and every Trustee and Successor Trustee is bound by this certification. It is further understood that the Company may rely upon the direction of the named Trustee(s) until the Company receives written notification at its Home Office of a change of Trustee. Furthermore, the Trustee(s) agrees to notify the Company of any changes to the Trust itself that will alter the information provided in this Trust Verification.
- The Trustee(s) declare that the Trust Agreement containing the terms of the Trust, including the names of the Trustee(s) and the date of the Trust, was formed and domiciled in the United States or one of its Territories and is now in full force and effect.
- For annuity contracts and for existing life insurance policies in states requiring that insurable interest exist on the transfer of issued policies, I/we agree that the beneficial interests under the Trust are now, can and will be established only for individuals who are related to and/or have a substantial interest in the Annuitant/Insured/Proposed Insured by blood or law or hold a lawful, substantial economic interest in the continued life of the Annuitant/Insured/Proposed Insured.

The signature(s) on the following page certifies the information provided and agreed to in this Verification is true and accurate:

**Note: Each Trustee named in section A, number 9 must sign below**

|                      |      |                      |      |
|----------------------|------|----------------------|------|
| Signature of Trustee | Date | Signature of Trustee | Date |
| X                    |      | X                    |      |
| Signature of Trustee | Date | Signature of Trustee | Date |
| X                    |      | X                    |      |
| Signature of Trustee | Date | Signature of Trustee | Date |
| X                    |      | X                    |      |

**Please be advised that the Company reserves the right to request and receive a copy of the Trust documents.**